

OFFICE OF THE MD (WEST ZONE)
M. P. Paschim Kshetra Vidyut Vitaran Co. Ltd.,
G.P.H. Compound, Pologround, Indore



Tender Specification No.MD/WZ/06/PUR/TS-1934

Due for opening on:-12.02.2026 at 15:00 Hrs
(Online No-_MPPKV 2026_MPPKV_476990_1)

Engagement of Agencies for providing various Software Licenses
and services through RCA for IT application of MPPKVVCL,
Indore under RDSS Scheme

Issued by:
The Chief Engineer (Purchase)

O/o MD (West Zone),
M. P. Paschim Kshetra Vidyut Vitaran Co. Ltd,
G.P.H. Compound, Pologround,
Indore (MP)

Phone No: - 0731-2426144, 2426204 & 2426116, Fax No: - 0731-2423300.

Website: - <https://www.mptenders.gov.in> & www.mpwz.co.in

Email: - sepurchase06@gmail.com

CIN No-U40109MP2002SGC015121

TENDER SPECIFICATION NO. 1934 “Engagement of Agencies for providing various Software Licenses & services through RCA for IT application of MPPKVVCL, Indore under RDSS Scheme” DUE FOR OPENING ON 12.02.2026 FROM 3.00 PM		
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AMENDMENT TO THE NIT-325/ TS-1934 THERE OF

Online tender has been invited through the publication of the NIT-325 dated 31.12.2025 for items /materials /services as per respective tender specification. The tender subject & Pre Bid meeting date of TS-1934 thereof are here by being amended & extended and read as follows:-

TS No.	Particular	Unit	Qty.	NIT Amount in Rs. Lakh	EMD (2% of tender value as per RDSS Guideline) (In Rs.)	Tender Fee (In Rs.)	Due date* of opening tender from 15:00 Hrs.	Pre-Bid Meeting date
1934	<u>Engagement of Agencies for providing various Software Licenses & services through RCA for IT application of MPPKVVCL, Indore under RDSS Scheme</u>	LS	LS	1912.21	38,24,420/-	10,000/-	12.02.2026	<u>29.01.2026</u>

All the other contents and conditions of the subject NIT remains unchanged & operative.

-Sd-
Chief Engineer (Purchase)
O/o MD, MPPKVVCL, Indore

NOTICE INVITING TENDERS

Online tender is invited for supply of following item/services. The sealed bids will be received online on the e-portal <https://mptenders.gov.in> up to date & time indicated below. The online tender will be opened in the office of the undersigned as mentioned in tender time schedule (key date). If desired, the bidder or their duly authorized representatives may remain present at the time of opening of tender: -

TS No.	Particular	Unit	Qty.	NIT Amount in Rs. Lakh	EMD (2% of tender value as per RDSS Guideline) (In Rs.)	Tender Fee (In Rs.)	Due date* of opening tender from 15:00 Hrs.	Pre-Bid Meeting date
1934	Engagement of Agencies for providing various Software Licenses & services through RCA for IT application of MPPKVCL, Indore	LS	LS	1912.21	38,24,420/-	10,000/-	12.02.2026	20.01.2026

- For updated / extended due dates for opening of tender (EMD in Envelope-A & Techno-commercial bid in Envelope-B) please refer to the online key dates.

Note:- All the participating firms outside of Madhya Pradesh are required to mandatorily pay the tender fee as well as EMD. Please refer the tender / NIT clauses for details in this regard.

- Other details can be seen in the complete tender documents available on e-portal <https://mptenders.gov.in> & our web site <http://www.mpwz.co.in>.
- Tender documents can be purchased only online and downloaded from <https://mptenders.gov.in> by making online payment for the prescribed **non-refundable** tender fees. Only in the case if the tender is dropped without opening, the tender fees shall be refunded after deduction of necessary portal charges. Manual purchase of tender is not allowed. The tender fee is inclusive of all applicable taxes.
- The Bid Data should be filled in and the Bid Seals of all the Envelopes and the documents which are to be uploaded by the Bidders should be submitted online as per time schedule (Key Dates).
- The relevant portion of tender which tenderers have to fill online would be available on above website on date mentioned against each tender. The Bidders shall have to submit their Bids online and upload the relevant documents / forms as per time schedule (Key Dates).
- Since the online bidders are required to sign their bids online using Class III-Digital Certificates only, hence they are advised to obtain the same at the earliest. For further information, Contractors are requested to contact Madhya Pradesh State Electronic Development Corporation Ltd, State IT Centre, 2nd Floor, 47-A, Arera Hills, Bhopal-462011, Telephone No. 0755-2518500 / 269, E-mail: mptenders@mpsdc.com.

6. Bidders intending to participate in the Tenders are required to get themselves trained on the e-Procurement System. They are required to contact Madhya Pradesh State Electronic Development Corporation Ltd, to confirm their session in advance.
7. The required amount of EMD shall be accepted through online payment only as per the clause of the “Instructions for online bid submission”.
The Bidders are required to invariably upload the valid documentary evidence of submission of online EMD (or EMD Exemption Certificate if applicable) in envelope-A without which online offer i.e., Envelopes-B & C shall not be opened.
8. No offer will be accepted without valid Earnest Money Deposit, unless exempted by the Company. If on opening of tender, it is revealed that EMD amount is inadequate / any other discrepancy is noticed, the tender shall be rejected.
9. The corrigendum or addendum to the bidding documents, if any, as well as any change in due date(s) of opening of tender will be published on the websites. Company’s website <http://www.mpwz.co.in> & the portal <https://mptenders.gov.in> but will not be published in newspaper. Hence participant bidders are advised to regularly visit the websites until the bid opening. The Company shall not be responsible in any way for any ignorance of the bidders about the corrigendum or addendum or change in the due date(s).
10. The company reserves the right to reject any or all the tenders or accept any tender in full or part as considered advantageous to the company, whether it is lowest or not, without assigning any reason whatsoever it may be.
11. The tender document will be uploaded on the portal normally 7 days prior to the date of pre-bid meeting (if applicable) or 15 (Fifteen) days prior to the date of respective tender opening, whichever is earlier. The interested bidders are advised to regularly visit the portal for the purpose.
12. **No submission in physical form shall be accepted at any stage during the online tender process.** Apart from online submission made till the due date of tender submission, no any further submission will be allowed. As such, bidder should ensure proper & full submission as required as per the tender terms to qualify in the tender.
13. **The Micro & Small Enterprises (MSEs) of Madhya Pradesh** registered with District Industries Centre (DIC)/Khadi & Village Industries Commission (KVIC)/ Khadi & Village Industries Board (KVIB)/Coir Board/NSIC/Directorate of Handicraft and Handlooms / **/Udyog Aadhar Memorandum(UAM)/Udyam** or any other body specified by Ministry of Micro, Small & Medium Enterprises on the date of opening of tender for **the tendered item(s)** shall be exempted **from payment of tender fee**. In support of above the bidders shall be required to upload the requisite documents on the portal of MP Tender, failing which their techno commercial bid shall not be considered for opening.

-Sd-
Chief Engineer (Purchase)
O/o MD, MPPKVCL, Indore

CRITICAL DATES & BASIC TENDER INFORMATION

Particulars	Details
Name of Work	“Engagement of Agencies for providing various Software Licenses & services through RCA for IT application of MPPKVVCL, Indore under RDSS Scheme”
Tender Specification Number	TS No.MD/WZ/06/PUR/TS- TS-1934 due on dtd.12.02.2026
Due date of submission of Tender (EMD + Techno-Commercial Bid Online)	11.02.2026 up to 15.00 Hrs.

Key Dates:-

Sr. No.	Tender Stage	Date & Time
1.	Publishing Date	21.01.2026 at 15:00 Hrs.
2.	Document Download/Sale Start Date	21.01.2026 at 15:30 Hrs.
3.	Pre-Bid Meeting Date	29.01.2026 at 15:00 Hrs.
4.	Bid Submission Start Date	02.02.2026 at 15:00 Hrs.
5.	Bid Submission End Date	11.02.2026 at 15:00 Hrs.
6.	Bid Opening Date	12.02.2026 at 15:00 Hrs.

Basic tender information:-

- Part-I (Envelop-1)-The bidder shall be required to deposit EMD online as specified in clause-5, section-1 of the tender specification and to upload a scan copy of the same in envelop-1. In case of exemption from payment of EMD as allowed in clause-5(iii), section-1 of the tender, bidder shall upload the scan copy of duly notarized documents as required in the above clause.

Note - One time EMD and Tender Fees as per NIT must be required from each participant/bidder, same documentary evidence are applicable for remaining 4 category.

- Part-II (Envelop-2)- The bidders shall be required to upload following documents digitally signed in the envelop-2 which shall form Techno commercial bid.
 - Schedule-II (A) & (B)-Schedule of questionnaire
 - Schedule- III, IV & V Duly notarized Undertaking / Declaration by the Bidder
 - Schedule- VI (A)- Past Experience
 - Schedule-VI(B), Schedule of Financial information
 - Schedule-VII (A) & (B)- Commercial & Technical deviations
 - Schedule-VIII, Check list
 - Schedule IX “PERFORMA OF Bank Guarantee”
 - Schedule X-Chartered Accountant Firm Certificate.
 - Schedule XI Tender Acceptance Letter
 - Duly signed & stamped copy of complete tender document with all corrigendum/addendums (if any).**
 - Legible copy of Type Test Reports for the tendered items duly notarized, if applicable.
 - Legible copy of BIS License for the tendered items duly notarized, if applicable.
 - Signed copy of Board resolution and Power of Attorney is required as specified in general qualifying criteria section-II.

(The DISCOM may include/exclude any of the document as per their requirement)

In case of error-ness/ non-submission/ missing of any of the above documents, the purchaser will have full right to reject the bid or evaluate the bid with the documents submitted by the bidder, as the case may be. The purchaser may however ask the bidder

for a clarification of its bid.

3. Part-III (Envelop- 3) the bidder shall quote their rates online only in the BOQ and shall be kept in envelop-III schedule-I.
4. The date of opening of financial/ price bid shall be informed separately. The bidders may please keep themselves updated of price bid opening from the e-portal.
5. Pre-bid conference (as per Discom requirement).

-Sd-

**Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore**

INSTRUCTIONS FOR ONLINE BID SUBMISSION:

The bidders are required to submit soft copies of their bids electronically on the MP TENDERS Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the MP TENDERS Portal, prepare their bids in accordance with the requirements and submitting their bids online on the MP TENDERS Portal.

More information useful for submitting online bids on the MP TENDERS Portal may be obtained at: <https://mptenders.gov.in/nicgep/app>

REGISTRATION

- 1) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://mptenders.gov.in/nicgep/app>) by clicking on the link “**Online bidder Enrolment**” on the MP TENDERS Portal **which is free of charge**.
- 2) As part of the enrolment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- 3) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the MP TENDERS Portal.
- 4) Upon enrolment, the bidders will be required to register **their valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage)** issued by any Certifying Authority recognized by CCA India (e.g. Sify / nCode / eMudhra etc.), with their profile.
- 5) Only one valid DSC should be registered by a bidder. Please note that the bidders are responsible to ensure that they do not lend their DSC’s to others which may lead to misuse.
- 6) Bidder then logs in to the site through the secured log-in by entering their user ID / password and the password of the DSC / e-Token.

SEARCHING FOR TENDER DOCUMENTS

- 1) There are various search options built in the MP TENDERS Portal, to facilitate bidders to search active tenders by several parameters. These parameters could include Tender ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for tenders, wherein the bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a tender published on the MP TENDERS Portal.
- 2) Once the bidders have selected the tenders they are interested in, they may download the required documents / tender schedules. These tenders can be moved to the respective ‘My Tenders’ folder. This would enable the MP TENDERS Portal to intimate the bidders through SMS / e-mail in case there is any corrigendum issued to the tender document.
- 3) The bidder should make a note of the unique Tender ID assigned to each tender, in case they want to obtain any clarification / help from the Helpdesk.

PREPARATION OF BIDS

- 1) Bidder should take into account any corrigendum published on the tender document before submitting their bids.
- 2) Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents - including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Bidder, in advance, should get ready the bid documents to be submitted as indicated in the tender document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid

documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document.

- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the bidders. Bidders can use “My Space” or “Other Important Documents” area available to them to upload such documents. These documents may be directly submitted from the “My Space” area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

SUBMISSION OF BIDS

- 1) Bidder should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Bidder will be responsible for any delay due to other issues.
- 2) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the tender document.
- 3) Bidder should prepare the EMD as per the instructions specified in the tender document. The bidder has to submit EMD by making Online payment on mptenders portal until unless not exempted from EMD.

Note - One time EMD and Tender Fees as per NIT must be required from each participant/bidder, same documentary evidence are applicable for remaining 4 category.

- 4) Bidders are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the tender document, then the same is to be downloaded and to be filled by all the bidders. Bidders are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the bidder). No other cells should be changed. Once the details have been completed, the bidder should save it and submit it online, without changing the filename. If the BoQ file is found to be modified by the bidder, the bid will be rejected.
- 5) The server time (which is displayed on the bidders’ dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the bidders, opening of bids etc. The bidders should follow this time during bid submission.
- 6) All the Documents submitted by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any Bid Document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to asymmetric encryption using buyers/bid openers public keys. Overall, the uploaded tender documents become readable only after the tender opening by the authorized bid openers.
- 7) The uploaded Tender Documents become readable only after the tender opening by the authorized bid openers.
- 8) Upon the successful and timely submission of bids (i.e. after Clicking “Freeze Bid Submission” in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with all other relevant details.
- 9) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO BIDDERS

- 1) Any queries relating to the Tender Document and the terms and conditions contained therein should be addressed to the Tender Inviting Authority for a tender or the relevant contact person indicated in the tender.
- 2) Any queries relating to the process of online bid submission or queries relating to MP TENDERS Portal in general may be directed to the 24x7 MP TENDERS Portal Helpdesk.

Contractors / Vendors / Bidders / Suppliers are requested to visit e-procurement portal of Govt. of Madhya Pradesh (<https://www.mptenders.gov.in>). The details and relevant links are available in the Bidders Manual Kit on the right pane of website which is furnished here-

S. No	Particulars	Downloads
1	Notice to Bidders	Notice to bidders v906.pdf
2	Registration of Bidders	Bidder Registration Manual Updated v906.pdf
3	Uploading of My Documents	MyDocument Updated v906.pdf
4	Online e-Bid Submission	Three Cover Bid Submission New v906.pdf Two cover bid submission new v906.pdf Four cover bid submission new v906.pdf Single Cover bid submission New v906.pdf
5	Online Bid Withdrawal	bid withdrawal updated v906.pdf
6	Online Bid Re-submission	Bid Resubmission Updated v906.pdf
7	Clarifications (Tender Status, My Archive...)	Enquiry Updated v906.pdf
8	Trouble Shooting	troubleshoot document v906.pdf
9	BoQ Preparation Guidelines	ItemWise BOQ New v906.pdf Percentage BOQ Updated v906.pdf ItemRate BOQ Updated v906.pdf

-Sd-
Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore

SECTION-I

GENERAL INSTRUCTIONS TO BIDDERS

1. The Chief Engineer (Purchase), O/o MD (West Zone), M. P. P. K. V. V. Co. Ltd., Indore on behalf of “**The Madhya Pradesh Paschim Kshetra Vidyut Vitaran Co. Ltd., Indore**” here-in-after referred to as “**Company**”, will receive sealed tenders / bids for **supply of materials / equipment’s** as per the specifications, at various places of M. P. Paschim Kshetra Vidyut Vitaran Co. Ltd., Indore.
2. The Bidders are requested to go through the General instructions to the Bidders Section-I, General Terms & Conditions of purchase contained in Section-III and Special Terms & Conditions of purchase contained in Section-IV except as modified/laid-down hereunder. It may be noted that no conditions or stipulations to the contrary or which are inconsistent will be accepted.
Bidders are requested to ensure that all such schedules along with questionnaire (duly filled-in), are submitted along with their offer. **The bidders should note that in absence of any of the schedules, as required in the tender, their offer shall be liable for rejection.**
3. Here are some of very important instructions which every bidder should read carefully for compliance before submitting the bid.

4. **VALIDITY OF BIDS**

Offers should be kept open for acceptance for at least 180 days from the date of opening. Those who do not agree for a validity of 180 days will do so at their own risk and no request for extending the validity is likely to be made from this office. However, if due to any circumstances, beyond control, bidders are advised to extend the validity, they shall not be permitted to revise their rates, offer any rebate or concession while extending the validity which may materially result in any reduction or increase in the computed prices of their original offer.

5. **EARNEST MONEY**

The bidder shall deposit the Earnest Money vis-à-vis the value of the tender offered as per the table given below:-

NIT Value	Earnest Money
INR- 1912.21 Lacs Inclusive of GST	2% of tender value i.e. Rs.-38,24,420/- Only
Note - One time EMD and Tender Fees as per NIT must be required from each participant/bidder, same documentary evidence are applicable for remaining 4 category.	

- i) **No offer will be accepted without Earnest Money Deposit, unless exempted by the Company/Purchaser.** If on opening of tender any discrepancy in EMD amount is noticed, the tender shall be rejected.
- ii) Bidder should prepare and submit the EMD in the form of BG/Online Payment as per the instructions specified in the tender document. The original should reach the concerned office latest by the last date of bid submission or as specified in the tender documents. The details of the BG, physically sent, should tally with the details available in the Portal and the data entered during bid submission time. Otherwise, the uploaded bid will be rejected. The Bidders are required to invariably upload the valid documentary evidence of submission of EMD (or EMD Exemption Certificate if applicable) in Envelope-A without which online offer i.e., Envelopes-B & C shall not be opened.
The Bid Security shall be in favour of Chief Engineer (Purchase), Corporate Office, Madhya Pradesh Paschim Kshetra Vidyut Vitaran Company Ltd., payable at Indore. As per SFMS platform the bank account details of purchaser needed for preparation of BG are detailed as follows:-
State Bank of India, SME Branch, Udyog Bhawan, 96, Pologround, Industrial Estate, Indore (MP) – 452015.
Bank IFSC Code: SBIN0004037.
Accordingly, it has to be ensured carefully that details of the BG are transmitted through SFMS from issuing bank to the branch mentioned above to authenticate confirmation / genuineness of the same. Bidder should prepare the EMD as per the instructions specified in the tender document. The original should be couriered and must reach the concerned office, latest by the last date of bid submission or as specified in the tender documents. The details of the BG, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise, the uploaded bid will be rejected.
- iii) The following are exempted from payment of EMD:

The Micro & Small Enterprises (MSEs) of Madhya Pradesh registered with District Industries Centre (DIC)/Khadi & Village Industries Commission (KVIC)/ Khadi & Village Industries Board (KVIB)/Cair Board/NSIC/Directorate of Handicraft and Handlooms / **Udyog Aadhar Memorandum(UAM)/Udyam** or with any other body specified by Ministry of Micro, Small & Medium Enterprises on the date of opening of tender for the tendered item(s). The SSI units of MP registered with DIC shall be exempted from payment of EMD on production of valid competency certificate. In support of above the bidders shall be required to upload the requisite documents on the portal of MP Tender, failing which their techno commercial bid shall not be considered for opening.

iv) Forfeiture of Earnest Money Deposit:

The EMD may be forfeited:-

- a) If a bidder withdraws or revokes its bid during the period of bid validity specified by the bidder.
- b) If a bidder modifies its bid in any manner before the validity of the bid expires.
- c) If a bidder does not accept the arithmetical corrections of its bid price;
- d) In the case of a successful bidder, if the bidder fails to furnish the Performance Security.
- e) If the successful bidder fails to sign the contract in accordance with the tender.
- f) In the event the bidder withdraws its bid after opening of price-bid, the firm may be debarred along with forfeiture of EMD.**

v) Return of earnest money to bidders.

- a) EMD shall be returned to the unsuccessful bidders, as soon as possible, after the tender is decided.
- b) The Bid Security of the successful bidder shall be returned as promptly as possible once the successful bidder has signed the Contract and furnished the required Performance Security.”

6. SUBMISSION OF BID

A. Bidders shall submit tender only online in following three parts. No physical submission of document/bid is required.

- i. Part-I (Envelop-1)-The bidder shall be required to deposit EMD online as specified in clause-5, section-1 of the tender specification and to upload a scan copy of the same in envelop-1. In case of exemption from payment of EMD as allowed in clause-5 (b), section-1 of the tender, bidder shall upload the scan copy of duly notarized documents as required in the above clause.
- ii. Part-II (Envelop-2)- The bidders shall be required to upload following documents digitally signed in the envelop-2 which shall form Techno commercial bid.
 - b. Schedule-II (A) & (B)-Schedule of questionnaire
 - c. Schedule- III, IV & V Duly notarized Undertaking / Declaration by the Bidder
 - d. Schedule- VI (A)- Past Experience
 - e. Schedule-VI(B), Schedule of Financial information
 - f. Schedule-VII (A) & (B)- Commercial & Technical deviations
 - g. Schedule-VIII, Check list
 - h. Schedule IX “PERFORMA OF Bank Guarantee”
 - i. Schedule X-Chartered Accountant Firm Certificate.
 - j. Schedule XI Tender Acceptance Letter
 - k. Duly signed & stamped copy of complete tender document with all corrigendum/addendums (if any).**
 - l. Legible copy of Type Test Reports for the tendered items duly notarized, if applicable.
 - m. Legible copy of BIS License for the tendered items duly notarized, if applicable.
 - n. Signed copy of Board resolution and Power of Attorney is required as specified in general qualifying criteria section-II.

(The DISCOM may include/exclude any of the document as per their requirement)

In case of error-ness/ non-submission/ missing of any of the above documents, the purchaser will have full right to reject the bid or evaluate the bid with the documents submitted by the bidder, as the case may be. The purchaser may however ask the bidder for a clarification of its bid.

- i. Part-III (Envelop- 3) the bidder shall quote their rates online only in the BOQ and shall be kept in envelop-III schedule-I.

B. The bidders are expected to be fully conversant with all the clauses of the bid document before submitting the bid. However, prospective bidder(s) regarding any clarification on bidding document may notify the purchaser in writing. Post award of contract any interpretation to any clause of the bid document shall not be entertained.

7. DATE AND TIME OF OPENING OF BIDS - CHANGES

Tender shall be opened on the due date and time as notified in the presence of the bidders or their authorized representatives who may be present. If the due date of opening/ submission of tender documents are declared a holiday by the Central/ State Government or Local Administration, it will automatically get shifted to the next working day, for which no prior intimation shall be given. The tender opening shall be continued on subsequent days, in case the opening of all the tenders is not completed on the day of opening.

It may please be noted that the due date/ time of opening can be altered, extended, if felt necessary by the purchaser, without assigning any reason thereof. However, due intimation shall be communicated in such a case.

8. OPENING OF E.M.D. & COMMERCIAL AND TECHNICAL BID

The first envelope of Earnest Money Deposit shall be opened on the due date and time, as notified in the Notice Inviting Tenders. The requirement for EMD shall be verified and thereafter, the second part, i.e. the Commercial & Technical Bid, shall be opened on the same date in respect of eligible bidders.

9. REQUIREMENT FOR OPENING OF PRICE BIDS:

After opening of first two parts (i.e. Part-I and Part-II), the deviations from the Company's terms & conditions, if any, proposed by the tenderer in regard to Technical Bid, as per prescribed schedules given along with the tender documents, shall be notified and clarifications as may be required by Company, shall be submitted by the tenderers either at the time of scrutiny of tender or within the time prescribed. After opening of Part-I EMD and Part-II Techno-commercial bid scrutiny will be done. In case of error-ness/ non-submission/ missing of any of the above documents, the purchaser will have full right to reject the bid or evaluate the bid with the documents submitted by the bidder, as the case may be. The purchaser may however ask the bidder for a clarification of its bid.

The Price Bids of such offers shall be opened who have:-

- i. Accepted all Commercial terms & conditions and Technical Specifications.
- ii. Qualified the basic qualification of the bidder, conflicting interest clause, financial, supply capacity & minimum quantity to be quoted, unsatisfactory Performance criteria.

Please ensure that the online documents furnished are legible.

10. UNSATISFACTORY PERFORMANCE

Even on fulfilment of all the criteria it may please be noted that:-

- i. Offers of those bidders whose work have been terminated or who have been debarred for future business with our company/ other DISCOMS of MP, may be summarily rejected.
- ii. In case of those bidders whose past performance has not been found to be satisfactory against previous tenders of the purchaser, they shall not be considered for opening of price bid. Some of the attributes to the poor performance of a bidder are as follows:-
 - **Non-execution of previous order(s).**
 - **Failures of Service in mass as reported/Noted by the Officer In-charge.**
 - **Non-Correction/Improvement of failed/defective Services timely.**

11. Pre-Bid Conference

- a) The Purchaser shall arrange a Pre-bid conference of bidders on **29.01.2026 at 15:00** Hrs in the Corporate Office (Urja Parisar) of MPPKVVCL, Indore, to clarify various clauses of the Bid Documents to ensure uniformity in understanding the bid documents.
- b) Bidders are advised to attend the Pre Bid Conference so as to clear all ambiguities and doubts and to point any mistakes or shortcomings which might be visible in the Tender.
- c) The Purchaser reserves the right to change the clauses as emerging after pre-bid conference or as per its discretion. Details of any doubt(s) about instant Tender Specification and/or required clarification/ suggestion/ modification in any of the terms & conditions and/ or the specifications etc. must be sent sufficiently in advance to the Purchaser through post or (preferably) through e-mail to **sepurchase06@gmail.com** so as to reach at least two days before the scheduled date of pre-bid meeting to enable this office to provide necessary clarification/ modification during pre-bid meeting.
- d) The Purchaser also reserves the right to insert new clauses or post amendments to Tender Specification etc. The changes shall be notified through addendum/corrigendum posted on Purchaser's website and e-procurement Govt. website to get all concerned informed. Bidders may therefore regularly visit the websites stated. The Purchaser shall not be responsible if some prospective bidder misses any Amendment/Addendum/ Corrigendum/ Due date extension related to the Tender.

12. AMENDMENT IN SPECIFICATIONS

The Purchaser may revise or amend the specification and drawing, prior to the date notified for opening of Technical Bid of tender. Such revision/ amendment, if any, will be communicated to all those who have bought the tender documents as Amendment/ Addendum to the invitation of tender.

13. BIDS IN OPEN FORM

Open bids through Telegram/Fax will not be considered under any circumstances.

14. ALTERNATIVE BIDS

Bid should be submitted as per intent of Tender Documents; any alternative offers are liable for rejection.

15. MISTAKES IN BIDS

Rates should be quoted in both; figures and words. In case of ambiguity between rates in figures and words, lower of the two/beneficial to the Purchaser shall be considered. Such offers can also be rejected.

16. LUMP SUM BASED BIDS

In case prices for some items or all items are given as a lump sum, instead of unit prices as required in the tender specifications, Purchaser can summarily reject such incomplete tender.

17. PRINTED TERMS AND CONDITIONS IN BIDS

Supplier's printed terms and conditions will not be considered as forming part of the tender under any circumstances whatsoever.

18. ALTERATIONS/CORRECTIONS IN BIDS

Any alteration/correction in the tender document should be counter-signed. Further, no post tender alteration/correction shall be entertained.

19. INCOMPLETE BIDS

Tender which is incomplete or obscure is liable for rejection.

20. AMBIGUITIES IN CONDITIONS OF BIDS:-

In case of ambiguous or self-contradictory terms/conditions mentioned in the bid, interpretation as may be advantageous to the Purchaser shall be taken without any reference to the tender.

21. LANGUAGE OF BIDS

All tenders should be made in English only.

22. CANVASSING OF BIDS

Tenders shall be deemed to be under consideration, after opening of tender/ bid, till placement of order. During this period, the bidders or their authorized representatives or other interested parties are advised strongly, in their own interest, to refrain from contacting by any means any of the Purchaser's personnel or Representative, on matters relating to tender under process.

23. ACCEPTANCE OF PART/WHOLE BIDS-RIGHTS THEREOF

Purchaser reserves the right to accept/ reject wholly or partly any tender without assigning any reason whatsoever. The Purchaser in this regard shall not entertain any correspondence.

24. FILLING OF QUESTIONNAIRE /SCHEDULES

All the Questionnaire / Schedules along with specification are enclosed for technical/ commercial terms & conditions. It is compulsory on the part of the bidder to furnish all details as sought in these. In case, these are not filled in and enclosed with the offer, the Bid will be rejected.

25. DEVIATIONS FROM TERMS & CONDITIONS

Offers with deviations in the terms of payment, liquidated damages, security deposit and performance guarantee are liable to be rejected out rightly.

26. AUTHORISATION/LOCAL REPRESENTATIVE

Only authorized representative, possessing necessary authority letter (on Rs. 50/- non judicial stamp paper) from the bidder/supplier who have participated in the tender shall be allowed to attend the tender opening and further submission/collection of documents in the event of order.

27. CHANGE OF QUANTITY

The quantity indicated in the Schedule-I (Price & Quantity) is tentative and purchaser reserves the right to change the quantities of any or all items to the any extent for award of order/Purchase Order, as may be necessary, based on Purchaser's judgment/requirement. No correspondence shall be entertained into, neither discussed regarding change in quantity, nor any reason will be assigned thereof.

28. POOL RATES

The bidders are advised to quote their own individual rates. It may please be noted that if more than one bidder quotes the same rate, suggestive of a cartel, then such offers may not be considered by the Purchaser. It may also please be noted that the competitive rate quoted by each bidder may be one of the main criteria for quantity to be ordered on each successful bidder.

29. The Purchaser reserves the right to accept/reject wholly and partly any tender without assigning any reason, whatsoever. No correspondence in this regard shall be entertained by the Purchaser.

NOTE: The other terms & conditions of the tender as described in Section-III of (General Terms & Conditions of Purchase) and Section-IV: Special terms and condition of purchase shall also be applicable.

-Sd-

**Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore**

SECTION-II(A) QUALIFYING CRITERION

1. Qualification Criteria

1.1. BASIC QUALIFICATION OF BIDDERS:

The bidding is open only for **Manufactures/Service provider of subject work** (Joint venture in any form shall not be allowed to participate in the bid) who provide satisfactory evidence.

- i. That they are qualified Manufacturers/Supplier who regularly **Manufactures or Service provider of subject work** and have adequate technical knowledge and practical experience.
- ii. That they have adequate financial stability and status to meet the financial obligations pursuant to the scope of the assignments as per Section-II Clause No.1.4-Financial of Pre-Qualification Eligibility Criterion.
- iii. That they have adequate Knowledge & capacity available to perform the assignment properly and expeditiously within the time period specified.

1.2. GENERAL CRITERIA

S. No.	Criteria	Documents required
(i)	The bidding is open to Companies registered in India under companies Act 1956 or Companies Act 2013. <u>OR</u> Partnership Firm registered with Registrar of firms and societies in India. Note: The Company or firm should be in operational for last 5 years- - The period of last five years will be calculated from the date of bid publication (NIT date) i.e. 31.12.2025.	<u>In case of Company:</u> a) Scanned copy of Certificate of Incorporation, Certificate of Commencement of Business and Certificate of change in name if applicable. b) Scanned Copies of Memorandum & Articles of Association of the Company. c) List of its present directors along with their name, address, telephone/mobile number and PAN duly signed by any Director of Company. d) Signed copy of Board resolution (by two directors at least) authorizing the Director(s) or any employee(s) of the Company or Authorized Person(s) acting on behalf of the company to execute bid document(s) and other correspondence with the Purchaser. In case of authorized person is an employee of the company then the same shall be supported by a suitable Power of Attorney on Rs.1000/- Non-Judicial Stamp paper. <u>In case of Partnership Firm:</u> a) Notarized Copy of certificate of registration of firms and societies. b) Notarized Copy of partnership deed. c) List of partners of the firm duly signed by any partner. d) Authority letter or consent letter signed by all partners in favour of any partner or any employee(s) of the firm or authorized person(s) acting on behalf of the firm, same shall be supported by a suitable Power of Attorney on Rs.

		1000/- Non-Judicial Stamp paper.
(ii)	They do not anticipate change in the ownership during the proposed period of Purchase Order (if such a change is anticipated, the scope and effect thereof shall be defined) or in case of any change is anticipated in due course i.e. during the tender period, a written intimation be communicated to this office or during the period of execution of the award, a written permission should be sought from this office.	In this regard bidder should submit undertaking duly sealed & signed on their company letter head.
(iii)	The Bidder must be registered under GST Act and should produce copy of the GST registration certificate, failing which offer shall be rejected. However, if it is undertaken by the bidder that GST registration is under process, in such case the price bid shall be considered for opening but the award will not be issued till registration under GST not submitted.	In this regard bidder should submit copy of the GST registration Certificate.

1.3. **TECHNICAL:**

S. N.	Eligibility criteria	Supporting documents required
(i)	The bidder must have supplied at least three among given below items(Licenses) in the last five years : (i) Oracle Database (ii) Oracle Middleware (iii) Oracle Identity Access Management (iv) Microsoft Office (v) Canva All in one Visual Suite (vi) Git Hub Note: The period of last five years will be calculated from the date of bid publication (NIT date).	Individual Client's Purchase Order (PO)/ Work Order(WO)/Letter of Award(LOA)/ Contract agreement/ Certification on client letterhead.
(ii)	Bidder must have Supplied Oracle Database/Oracle Middleware/Oracle Identity Access Management/Microsoft Office/Canva All in one Visual Suite/Git Hub in the capacity of lead bidder/Consortium Partner within last five (5) years under order(s)/project(s) (including its extension) having total contract value not less than Rs. 5.00 crores	Individual Client's Purchase Order (PO)/ Work Order (WO)/Letter of Award(LOA)/ Contract agreement/ Certification on client letterhead.

S. N.	Eligibility criteria	Supporting documents required
	(5 Cr. Value will be considered within Max. 3 Orders) Note: The period of last five years will be calculated from the date of bid publication (NIT date).	
(iii)	Bidder must be submit OEM Authorization for any three category of Price Schedule-I	Relevant OEM Authorization Certificate

1.4. FINANCIAL:

The purchaser will take account of the following financial criteria to verify the qualification of the bidder. These criteria shall be evaluated on a Pass–Fail basis only:-

- The bidder should have sound financial capability. Bidders’ annual turnover for the last financial year should be 20% of the tender value or its aggregate turnover for the last five financial years should not be less than the tender value. If the tender is issued after September month, then last year should be financial year ended in month of current year and if tender is issued in or before September month then the last financial year should be the financial year ended in month of last year.
- Minimum working capital of the bidder as per the audited balance sheet for the last financial year / Bank Utilization Certificate – Fund Based (not more than 30 days from the date of opening of tender) should be 10% of the tender value.
- The approximate value of the instant tender is Rs.1912.21 Lakh incl. GST.

In support of above bidders shall require to submit a Certificate issued by a CA, as prescribed in Schedule-X of the tender as against financial criteria of the tender specification.

Important Note:-“The bidders are required to ensure & satisfy at their end that they are eligible and have submitted the scanned copies (duly sealed & signed by the authorized signatory for this tender) of all related documents/certificates against each and every Clause of the qualifying requirement as well as desired documents/duly filled forms (if any) as per requirement of the tender. In case of non-submission of any requisite documents of qualification requirements, the offers shall be liable for rejection, as no further submission is allowed, which is to be clearly noted. Only clarification about submitted documents/offers, required if any, same may be sought from this end.”

2. CONFLICT OF INTEREST

Bidder shall not have a conflict of interest with one or more parties. Participation by bidder(s) with a conflict of interest situation will result in the disqualification of all bids in which it is involved. Purchaser considers a conflict of interest to be a situation in which a party has interest that would improperly influence that party’s performance of official duties or responsibilities, contractual obligations or compliance with applicable laws and regulations, and that such conflict of interest may contribute to or constitute a prohibited corrupt practice. A bidder may be consider to be in a conflict of interest with one or more parties if including but not limited to :-

- Have controlling shareholders as his/her family members viz. Spouse, Son, Daughter, Father, Mother or Brother in common, or.
- Have a relationship with each other, directly or through common third parties that puts them in a position to have access to information about or influence on the bid of another bidder.

- iii. Has a close business or family relationship (Spouse, Son, Daughter, Father, Mother or Brother) with a professional staff of the employer (or of the project implementing agency, or of a recipient of a part of the loan) who; (i) are directly or indirectly involved in the preparation of the tender document or specifications of the contract, and / or the tender evaluation process; or (ii) would be involved in the implementation of supervision of such contract.

The bidders shall be requested to furnish following documents/undertaking in this regard:-

- a) Copy to latest Income Tax return/Permanent Account Numbers (PAN) of all the partners/Directors (in case of company) along with names, addresses and telephone Nos. / Mobile Nos. of each Partner/Director.
- b) Latest partnership/ownership deed of the firm quoting the tender.
- c) Copy of list of directors (in case of a company) with names, addresses and telephone Nos./Mobile Nos. of each director.
- d) Power of Attorney to sign the tender documents and all correspondence before and after placement of order.
- e) “Regarding Serving Officer(s) or Employee(s) of the MP Discoms”:
The bidder shall confirm that no serving Officer(s) or Employee(s) of the MP Discom is/ are partner(s) of the bidder’s firm or having shares or has any interest in his /her firm. The Bidder shall further confirm that no partner of his / her firm has any close relationship (Spouse, Son, Daughter, Father, Mother or Brother) with any serving Officer(s) or Employee(s) of the MP Discoms.

3. EVALUATION OF OFFERS AND ACCEPTANCE OF TENDER

- i. The Purchaser may reject any or all tenders or to accept any tender considering advantageous to Purchaser whether it is the lowest offer or not without assigning any reason.
- ii. If any taxes are not quoted, the Purchaser reserves the rights to load the quoted prices as per the applicable rate of taxes prevalent at the time of bid evaluation for price comparison purposes. However, responsibility in this regard shall solely rest with bidder.

4. COMPUTATION OF LOWEST ACCEPTABLE RATE (L1)

Price bids of qualified Bidders shall be opened. The price bid schedules are categorised by specific make licenses. The evaluation is conducted on a Category-Wise basis. This means a bidder is not compared across the entire tender, but rather within the specific license categories they choose to enter. The L1 bidder is determined by the **lowest total amount** (sum of all line items) for a specific category. This total amount must be inclusive of freight, GST, and delivery costs. Bidders must quote for **every single line item** within a chosen category. Leaving even one item blank results in disqualification for that category. Bidders have the flexibility to participate in just one category or all five categories. If a bidder provides a wrong, misleading, or missing rate for any line item, their **Earned Money Deposit (EMD) will be forfeited**.

If two or more bidders submit the exact same lowest total price for a category, then the firm with the **higher turnover in FY 2024-25** will be declared the L1 bidder.

REVERSE AUCTION

After opening of Price Bid, the Purchaser will conduct a Reverse Auction (RA) among the technically and commercially qualified bidders, through mptenders portal for determination of the lowest bidder (L1). The bidders shall confirm their acceptance to participate in the Reverse Auction at the time of submission of their bids. Bidders who do not accept Reverse Auction shall not be considered for further evaluation.

i. Process of Reverse Auction

- a. Only the bidders who qualify in the technical and commercial evaluation and whose price bids are opened shall be eligible to participate in the Reverse Auction.
- b. The Reverse Auction will be conducted on a specified date and time, which will be communicated to the eligible bidders electronically through system generated email and SMS by mptenders portal.

- c. The date and time of commencement of Reverse Auction and duration of Reverse Auction time shall be communicated at least 4 days prior to such auction date. Any force majeure or other condition necessitating postponement of auction shall entitle MPPKVVCL to postponement of auction even after communication, but, MPPKVVCL shall be obliged to communicate to all participating vendors the postponement prior to commencement of such Reverse Auction.
- d. Name of bidders/ vendors are anonymously masked.
- e. All qualified bidders can quote and lower their price offers.
- f. The lowest bidder can be displaced by an even lower bid, within the given time frame.
- g. Bid can be only at multiples of specified decrement value.
- h. All bidders are able to view the current lowest price during the auction time.
- i. On completion, a report is generated with all details of bid and the original names of the bidders.
- ii. Start Price & Decrement**
 - a. The Purchaser shall start the Reverse Auction based on the lowest price discovered through the initial price bids.
 - b. The minimum decrement shall be notified. Bidders shall be able to reduce their price only by a minimum decrement or its multiples.
 - c. The initial auction period will be 60 minutes (Sixty minutes) with a provision of auto extension by 10 minutes (Ten minutes) from the scheduled / extended closing time if any fresh bid is received in last 10 minutes (Ten minutes) of auction period or extended auction period. Such auto extensions shall be effective only if, reduction in rate by a Bidder.
- iii. Determination of L1**
 - a. At the end of the Reverse Auction, the bidder quoted the lowest price shall be considered as L1, subject to verification of arithmetical errors and compliance to tender terms.
 - b. After completion of Reverse Auction process, Price Breakup of L-1 bidder shall be derived (keeping their own quoted Freight & Insurance charges same) from initially submitted Price Bid.
- iv. Other Conditions**
 - a. The Purchaser/Employer reserves the right to accept or reject the Reverse Auction result, or to annul the Reverse Auction process, without assigning any reason thereof.
 - b. In case of failure of the Reverse Auction due to no participation or technical failure, the Purchaser/Employer may decide to proceed with the original price bids submitted.
 - c. The price quoted in the Reverse Auction shall be inclusive of all applicable taxes, duties, levies, freight, insurance, etc., unless otherwise specified in the Tender.
 - d. Bidders are advised to ensure that they are fully trained and aware of the manner in which the E-bidding Portal operates and also clarify all their doubts regarding issues such as refreshing of screen, auction rules etc.
 - e. Discom will not entertain or accept any request for extension of time during the Reverse Auction Process. Bidders are, therefore, requested to make all the necessary arrangements/ alternatives as may be required to ensure their successful participation in the Reverse Auction Process. Failure of power or loss of internet connectivity at the premises of Bidders during the Reverse Auction Process cannot be the cause for failure to participate in the Reverse Auction Process. Discom shall not be responsible or liable for such eventualities.

-Sd-
Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore

SECTION-II(B) **SCOPE OF WORK**

1. BACKGROUND

Madhya Pradesh Paschim Kshetra Vidyut Vitaran Company Limited (MPPKVVCL, Indore) (hereinafter shall be referred as the “Company”) is a power distribution company formed out of the unbundling of Madhya Pradesh State Electricity Board (MPSEB) in 2005, as a part of the Madhya Pradesh power sector reforms after the 1st phase of restructuring. Post 2nd phase of restructuring in 2012, the Company has been operating as a subsidiary company of holding company Madhya Pradesh Power Management Company Limited (MPPMCL, formerly known as “MP Tradeco”).

The Company is incorporated under the Companies Act, 1956 and has its registered office at G.P.H. Compound, Pologround of Indore. The GST Registration No. of the Company is 23AA DCM 7397 N1ZU.

MPPKVVCL, Indore is floating this tender for “**Engagement of Agencies for providing various Software Licenses & services through RCA for IT application of MPPKVVCL, Indore**”.

2. OBJECTIVE

The Purchaser intends to procure various licenses considering the execution/hosting of IT applications in the cloud environment, the usage of related applications, data, and the expansion of IT infrastructure licenses for client machine, PC and keeping in view the future requirements including the provision for increasing the number of software licenses, it is proposed to invite a tender for the rate contract of the central and end-user licenses.

3. AGENCYS’ RESPONSIBILITIES

The Agency shall be responsible for following works:

- (i) License is to be procured on Purchaser's name. Agency is required to submit all licenses on email id of purchaser within 30 days of issuing work order in this regard.
- (ii) License procured under this RFP should have the flexibility so that the same can be installed at any cloud environment /Data Centre and assigned to any Office and/or any Employee working in MPPKVVCL, Indore. Purchaser reserves the right to maintain the master list of all Employee/Offices, which can be made active/inactive as per the Purchaser’s business requirement.
- (iii) The Subscription Fees along with the OEM Support (including timely Product/Patch up gradation) is to be included in license fee and no extra payment in this regard shall be given by the Purchaser.
- (iv) The value is to be quoted only in INR and should be valid (i.e. on fixed rates) for instant contract period as well as their subsequent extension period (If Any), as mentioned in Contract extension clause of subject tender.
- (v) Agency should provide the access of following to the Purchaser directly through OEM's online portal:
 - Software Downloads: To download the latest versions of the software, updates and patches.
 - Service Requests: Support/Service request submission, resolution and status enquiry system. It should have facility to navigate to some basic functions like download and manage licenses, manage service requests etc. It should also have facility to search product centric technical and support information, documentation and manuals etc.
 - Knowledge Base/Community: Facility to search all support content to troubleshoot and manage products.

3.1. OEM SUPPORT THROUGH AGENCY

- (i) If any issue related to core software product is observed, it is Agency’s responsibility to escalate the same to OEM. The Agency will follow-up with OEM as per escalation matrix and make sure that the issue gets resolved within the defined timeline.

- (ii) Purchaser's email ID may be configured for necessary notification/alerts related to core software product/patch release. The same may also be used by Agency to download the core software product, update & patches and to lodge any service request with OEM under the knowledge/approval of the Purchaser.
- (iii) In order to fix the issue related to core software product, if any reinstallation, reconfiguration of core software product/patches is required, the same will be either carried out by Agency or necessary help is to be provided by the Agency/OEM to Purchaser's application implementation partner. However, the sole responsibility lies with the Agency only.

3.2. Technical Specifications:

Sr No	Service/License	Technical Specifications
1	Oracle DB as a Service (Oracle Database Cloud Service - Enterprise Edition)	The bidder shall provide subscription-based Database as a Service (DBaaS) of Oracle Database Cloud Service – Enterprise Edition, to be hosted on a public cloud platform, including: a) Enterprise database software license. b) Database management and maintenance services. c) Technical support during the subscription period. d) Enterprise-grade relational database equivalent to Oracle Database Enterprise Edition. e) License must permit commercial and production usage. f) Licence must be CPU based and CPU/Processor shall be termed as Physical Core instead of virtual CPU. g) The Licence must be usable and transferrable, to use in different cloud service providers. h) No separate on-premises license procurement shall be required. i) Virtual Machine–based database deployment. j) Single-instance database architecture. k) Deployment within isolated cloud virtual network (VPC / private subnet). l) Dedicated database instance (no shared database schema model). m) Support for enterprise transactional (OLTP) and mixed workloads. n) Online scaling of CPU, memory, and storage resources. o) High-performance block storage for database files. p) Built-in high availability at infrastructure and database level q) Automatic database restart and recovery on infrastructure failure r) Minimum service availability SLA of 99.9% s) Support Automated full and incremental backups t) Support Backup storage on secure cloud object storage u) Must support Point-in-time recovery (PITR) capability v) Must Support On-demand backup and restore w) Encryption of data at rest

Sr No	Service/License	Technical Specifications
		x) Encryption of data in transit y) Role-based access control through cloud IAM z) Network isolation using private subnets and security rules - aa) Database auditing and activity logging - bb) Web-based cloud management console - cc) Monitoring of CPU, memory, storage, I/O, and database sessions - dd) Alerting and performance metrics - ee) API / CLI support for administration and automation - ff) Automated database patching support - gg) Scheduled maintenance windows - hh) Regular security and critical patch updates during subscription ii) Compatibility with Oracle-based applications - jj) Support for standard database connectivity (JDBC / ODBC) - kk) Support for migration from on-premises or multi-cloud Oracle databases. - ll) Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. - mm) All licenses shall be procured and issued strictly in the name of MPPKVVCL only. - nn) Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. - oo) Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period. - pp) Online Comprehensive documentation and user guides must accompany the deployment for easy usability.
2	Oracle DB license with RAC & Data Guard as a Service (Oracle Database Cloud Service - Extreme Performance)	a. The offered solution must be Oracle Database Cloud Service – Extreme Performance edition. b. The service must include above Oracle Database Cloud Service - Extreme Performance license on a subscription basis. c. The service must be fully managed and provided as Database-as-a-Service (DBaaS). d. The solution must support Oracle Real Application Clusters (RAC) to enable active-active database instances. e. RAC must provide automatic workload balancing, node-level failover, and high availability. f. The solution must support horizontal scalability by adding/removing nodes without downtime.

Sr No	Service/License	Technical Specifications
		g. The solution must include Oracle Data Guard as a managed service. h. Data Guard must support both synchronous and asynchronous replication modes. i. The solution must provide automatic failover and role transition (Switchover/Failover). j. Data Guard must support standby databases in the same or different availability domains/regions. k. The service must support high-performance compute shapes with dedicated CPU (OCPU) resources. l. Licence must be CPU based and CPU/Processor shall be termed as Physical Core instead of virtual CPU. m. The Licence/Service must be usable and transferrable, to use in different cloud service providers. n. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. o. The solution must support high IOPS and low-latency storage suitable for mission-critical workloads. p. The solution must support performance optimization features such as intelligent caching and optimized I/O. q. The solution must allow online scaling of CPU, memory, and storage without service interruption. r. The Licence must allow Storage to be expandable on-demand with no data constraint. s. The solution must provide automated database backup capabilities. t. Backups must support point-in-time recovery (PITR). u. Backup storage must be encrypted and retained as per configurable retention policies. v. The solution must support encryption at rest and encryption in transit. w. The solution must integrate with cloud-native Identity and Access Management (IAM). x. The service must support role-based access control (RBAC). y. The solution must comply with enterprise and government security standards. z. The solution must provide built-in monitoring, alerting, and performance diagnostics. - aa. The service must support automated patching for database and underlying infrastructure. - bb. The solution must provide centralized management through a web-based console. - cc. The service must offer enterprise-grade SLA for availability and uptime.

Sr No	Service/License	Technical Specifications
		dd. The solution must support deployment across multiple availability domains for resilience. ee. The solution must include all required Oracle licenses (Enterprise Edition, RAC, Data Guard) as part of the cloud subscription. ff. No separate perpetual database license other than above should be required from the purchaser. gg. The solution must be compliant with Oracle licensing policies for cloud deployment. hh. The service must include OEM/Principal support with defined response SLAs. ii. The solution must support 24x7 technical support for production workloads. jj. Support for cross-region disaster recovery kk. Autonomous patching and maintenance windows ll. Integration with existing on-premises Oracle databases mm. Advanced analytics and performance tuning tools nn. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. oo. Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. pp. Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.
3	Middleware Oracle App. (Oracle WebLogic Suite)	The bidder shall provide Licence to use Oracle WebLogic Suite, an enterprise-grade Java EE / Jakarta EE compliant application server middleware, licensed and supported by Oracle, for hosting mission-critical web and enterprise applications. a. The offered solution must be Oracle WebLogic Suite as a subscription service for running enterprise Java applications on public cloud, delivered as a fully managed application server platform. b. The Licence must be usable and transferrable, to use in different cloud service providers. c. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. d. The solution must be based on Oracle WebLogic Suite, which includes Oracle WebLogic Server Enterprise Edition and Oracle Coherence Enterprise Edition for in-memory data grid capabilities. e. The service must provide a unified, extensible Jakarta EE platform for developing, deploying, and running

Sr No	Service/License	Technical Specifications
		enterprise Java applications for Oracle Database–backed workloads. f. The service must support deployment and operation of WebLogic domains and clusters in public cloud environments with full application portability between on-premises and cloud. g. The service must support the current WebLogic 15.1.1 release (or higher) with compatibility for Jakarta EE 9.1 and Java SE 17/21. h. The solution must include Oracle Coherence as an integrated in-memory data grid for predictable performance and linear scalability of data-intensive applications. i. The service must support enterprise-grade clustering for high availability of applications, including HTTP session replication, EJB clustering, and JMS clustering. j. The solution must support dynamic clusters with elasticity features to scale up and down automatically based on workload. k. The service must support integration with Oracle Real Application Clusters (RAC) via GridLink for RAC for database load balancing, failover, and XA transaction support. l. The solution must provide advanced caching (ActiveCache) using Coherence to reduce database load and improve throughput and latency for Oracle Database applications. m. The service must support autoscaling and automatic restart of failed managed servers when deployed with container and orchestration platforms such as Kubernetes. n. The service must support full operation on Kubernetes, including domain deployment, scaling, and lifecycle management via the WebLogic Kubernetes Operator and associated toolkit. o. The solution must support packaging WebLogic domains and applications in containers (for example using Docker images) with scripts and tooling to provision and update environments. p. The service must expose administration and management via REST APIs, WLST scripting, and CLI to enable DevOps automation and infrastructure-as-code. q. The solution must support integration with Java microservices frameworks such as Helidon and interoperability with existing WebLogic applications for hybrid architectures. r. The service must provide enterprise security features including role-based access control, authentication

Sr No	Service/License	Technical Specifications
		providers, SSL/TLS, and separation of administrative and application roles. s. The solution must include rich administration tooling such as the Administration Console, Node Manager, and diagnostic framework (WLDF) for configuration, monitoring, and troubleshooting. t. The service must support centralized logging, log filtering, and integration of application logs with server logs for observability. u. The solution must support JMS, JTA, JDBC, and other Jakarta EE services with features such as store-and-forward messaging, XA transaction recovery, and connection pool tuning. v. The service must support integration with Oracle Database and other enterprise systems through standard APIs and Oracle middleware integrations. w. The service must provide mechanisms for zero- or minimal-downtime patching of WebLogic Server domains, including rolling restarts across clusters. x. The solution must support multi-data-center or multi-region topologies to enable disaster-recovery architectures for critical Oracle Database-based applications. y. The service must offer enterprise-grade SLAs for platform availability and performance appropriate for mission-critical Java EE/Jakarta EE applications. z. Oracle WebLogic Suite must be offered as a subscription on public cloud, including all WebLogic Suite components (WebLogic Server Enterprise Edition and Coherence Enterprise Edition) under the subscription terms. - aa. The subscription must be compliant with Oracle licensing policies for WebLogic Suite in cloud environments, including supported metrics such as per-processor or per-user where applicable. - bb. The service must include principal vendor technical support for WebLogic Suite with defined response SLAs and 24x7 support for production workloads. - cc. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. - dd. Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. - ee. Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.

Sr No	Service/License	Technical Specifications
4	Oracle for Single Sign-on & MFA (Identity and Access Management - Premium)	The bidder shall provide Oracle Identity and Access Management (IAM) – Premium Edition as a managed service, enabling enterprise-grade Single Sign-On (SSO) and Multi-Factor Authentication (MFA) for cloud and custom-built web applications developed using Java and Python frameworks. 1. The solution must provide centralized Single Sign-On (SSO) for users to securely access multiple applications using a single set of credentials. 2. The solution must support SSO integration with custom-built web applications developed in Java and Python, without requiring proprietary application rewrites. 3. All other license supply of this kind will solely depend on the success of the PoC demonstration. 4. The solution must support industry-standard authentication and authorization protocols, including but not limited to SAML 2.0, OAuth 2.0, OpenID Connect (OIDC) 5. The solution must support browser-based and API-based authentication for web and service-oriented applications. 6. The solution must support federation with external Identity Providers (IdPs) such as Active Directory, LDAP, and third-party cloud IdPs. 7. The solution must provide built-in Multi-Factor Authentication (MFA) to enhance user authentication security. 8. Supported MFA methods must include: 9. Mobile authenticator applications, One-Time Passwords (OTP) via SMS and Email, Push notifications, Time-based OTP (TOTP). 10. The solution must support MFA for custom-built Java and Python web applications integrated via standard IAM protocols. 11. The solution must provide SDKs, APIs, or libraries to enable secure SSO and MFA integration with: 12. Java-based web applications (e.g., Spring / Java EE / Jakarta EE) 13. Python-based web applications (e.g., Django / Flask / Fast API) 14. The solution must support token-based authentication and authorization (JWT / OAuth tokens) for backend services developed in Java and Python. 15. The solution must support REST-based APIs for identity, authentication, and authorization services. 16. Integration must be compliant with Oracle OCI IAM official documentation to ensure vendor neutrality and audit compliance.

Sr No	Service/License	Technical Specifications
		17. The solution must support centralized user lifecycle management, including user provisioning, de-provisioning, and role management. 18. The solution must support Role-Based Access Control (RBAC) and policy-based authorization. 19. The solution must support group-based access policies applicable to custom and COTS applications. 20. The solution must comply with industry security standards and best practices, including encryption of data in transit and at rest. 21. The solution must provide audit logs and authentication activity reports for compliance and security monitoring. 22. The solution must support integration with SIEM or security monitoring tools via standard interfaces. 23. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. 24. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. 25. Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. 26. Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.
5	Microsoft 365 as a service (Microsoft 365 E3 Enterprise)	1. Must have full suite of modern Office applications with desktop, web, and mobile versions with latest updates. E.g. 2. Word, Excel, PowerPoint, Outlook 3. OneNote, Microsoft Access (PC only) 4. Microsoft Forms, Planner, To Do, Lists 5. Microsoft Loop co-creation workspaces 6. Digital storytelling with Sway and diagrams/flowcharts via Visio for the web 7. Video creation/editing with Clipchamp 8. Must have Following Collaboration & Communication Tools 9. Exchange Online for business-class email and calendar 10. Microsoft Teams for chat, meetings, calls, webinars (Teams may require appropriate license assignment) 11. OneDrive for Business cloud storage (1–5+ TB per user) 12. SharePoint Online for intranets, team sites, and document management 13. Microsoft Whiteboard for visual collaboration; Microsoft 365 Groups for team access and resources.

Sr No	Service/License	Technical Specifications
		14. Must provide following enterprise-grade security and compliance capabilities designed to protect data and support governance: a) Identity & access management (Azure AD integration) b) Antivirus & antimalware protection c) Shadow IT discovery & Endpoint Security Basics d) Microsoft Purview Information Protection — helps classify and protect sensitive information e) Data Loss Prevention (DLP) policies (email, SharePoint, OneDrive) f) E-Discovery and auditing tools for legal and compliance requirements. 15. Must include capabilities to help manage devices and secure endpoints: 16. Microsoft Intune (mobile and device management) 17. Unified endpoint protection and management 18. Policy enforcement across PCs, tablets, and phones. 19. Cloud-connected AI chat for productivity help, writing assistance, and data analysis 20. Integration with agents and intelligent features across apps 21. Continuous updates with new features and security improvements. 22. Other Included Services 23. Microsoft Planner & To Do for task and workload management 24. Microsoft Forms for surveys and data collection 25. Microsoft Loop for flexible team workspaces 26. Shared tools like Delve, Lists, and Whiteboard for enhanced teamwork 27. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. 28. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. 29. Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. 30. Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.
6	Microsoft 365 as a service (Microsoft 365 E3 Enterprise) With	1. Must have full suite of modern Office applications with desktop, web, and mobile versions with latest updates. E.g. 2. Word, Excel, PowerPoint, Outlook

Sr No	Service/License	Technical Specifications
	Microsoft 365 Copilot Addon	3. OneNote, Microsoft Access (PC only) 4. Microsoft Forms, Planner, To Do, Lists 5. Microsoft Loop co-creation workspaces 6. Digital storytelling with Sway and diagrams/flowcharts via Visio for the web 7. Video creation/editing with Clipchamp 8. Must have Following Collaboration & Communication Tools 9. Exchange Online for business-class email and calendar 10. Microsoft Teams for chat, meetings, calls, webinars (Teams may require appropriate license assignment) 11. OneDrive for Business cloud storage (1–5+ TB per user) 12. SharePoint Online for intranets, team sites, and document management 13. Microsoft Whiteboard for visual collaboration; Microsoft 365 Groups for team access and resources. 14. Must provide following enterprise-grade security and compliance capabilities designed to protect data and support governance: a) Identity & access management (Azure AD integration) b) Antivirus & antimalware protection c) Shadow IT discovery & endpoint security basics d) Microsoft Purview Information Protection — helps classify and protect sensitive information e) Data Loss Prevention (DLP) policies (email, SharePoint, OneDrive) f) E-Discovery and auditing tools for legal and compliance requirements. 15. Must include capabilities to help manage devices and secure endpoints: 16. Microsoft Intune (mobile and device management) 17. Unified endpoint protection and management 18. Policy enforcement across PCs, tablets, and phones. 19. Cloud-connected AI chat for productivity help, writing assistance, and data analysis 20. Integration with agents and intelligent features across apps 21. Continuous updates with new features and security improvements. 22. Other Included Services 23. Microsoft Planner & To Do for task and workload management 24. Microsoft Forms for surveys and data collection 25. Microsoft Loop for flexible team workspaces 26. Shared tools like Delve, Lists, and Whiteboard for enhanced teamwork

Sr No	Service/License	Technical Specifications
		27. Microsoft 365 Copilot add-on with Microsoft 365 E3 Enterprise. 28. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. 29. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. 30. Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.
7	Canva Design & PDF Tool (Canva All in one Visual Suite for Business)	The bidder shall provide Canva cloud-based design and creative collaboration platform on subscription basis for official use, enabling creation, editing, collaboration, brand management, AI-assisted design, and publication of digital and print-ready content with following but not limited to functionalities. - The solution shall support multi-user collaboration with role-based access control. - The platform shall provide centralised storage and management of digital assets, including images, videos, templates, and documents. - The system shall support integration with third-party applications to enhance productivity and workflow automation - The platform shall provide access to not less than 3.6 million design templates, including premium templates. - Templates shall support official use cases such as presentations, reports, advertisements, social media creatives, posters, documents, and other communication materials. - Templates shall be fully editable and reusable. - The solution shall include access to not less than 141 million premium digital assets, including: Photographs, Videos, Graphics and illustrations, Audio files - All media assets shall be licensed for commercial and official government use, without additional royalty. - The platform shall support creation and management of up to 100 Brand Kits. - Brand Kits shall allow configuration of logos, colour palettes, fonts, and visual identity guidelines.

Sr No	Service/License	Technical Specifications
		k) The system shall enforce brand compliance across all users and departments including Government Organisations. l) The solution shall provide enhanced AI-based design assistance for content creation and optimization. m) AI features shall include automated design suggestions, content generation, and layout recommendations. n) Higher AI usage limits must be available as part of the subscription. o) The platform shall provide AI-based affinity and personalization features for intelligent creative workflows. p) The solution shall include advertisement insights, inspiration tools, and AI-powered ad creation capabilities. q) Access to AI image generation tool shall be included. r) The solution shall provide a minimum of 500 GB cloud storage per organization. s) Storage shall be secure, scalable, and accessible across authorised users. t) The platform shall include administrative tools for: User and role management, Approval workflows, Usage and activity reporting, AI usage controls u) The administrator shall have full control over permissions and governance. v) The solution shall support print-ready output and integration with print services. w) A minimum 10% discount on print orders shall be applicable for subscribers. x) The platform shall comply with standard data security, privacy, and access control norms applicable to Government organisation. y) Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. z) All licenses shall be procured and issued strictly in the name of MPPKVVCL only. - aa) Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. - bb) Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.

Sr No	Service/License	Technical Specifications
		cc) Online User Training needs and online support documentation to be provided every six months to ensure effective platform uptake and use.
8	Git Hub Co Pilot Individual (Git Hub Co Pilot Individual Pro)	The bidder shall provide GitHub Co-pilot Individual Pro / GitHub Pro Plus subscription licenses, valid for the contract period, with entitlement to all features as specified below. a) The solution must provide Assisting in code generation, refactoring, debugging, and optimization b) Supporting autonomous or semi-autonomous agent mode for coding tasks c) Allowing interactive chat-based programming assistance d) Must support unlimited agent mode usage and chat interactions using supported AI models including GPT-5 mini or higher e) Must allow conversational assistance directly within the development environment f) The solution shall provide unlimited AI-based code completions g) Code suggestions must be context-aware and applicable across multiple programming languages and frameworks h) The license must provide access to multiple large language models, including but not limited to: GPT-5, Claude Sonnet 4 / 4.5, Claude Opus 4.1, Gemini 2.5 Pro i) Other equivalent or superior models as made available by the OEM during the subscription period. j) The Pro license shall include a minimum of 300 premium model requests k) The Pro Plus license shall include at least 5 times the premium request quota of the Pro license l) Provision must exist to purchase additional premium requests, if required m) The tool must support automated and AI-assisted code review n) Capabilities shall include detection of bugs, security vulnerabilities, performance issues, and adherence to coding standards o) Must support integration with Visual Studio Code (VS Code) p) Must include support for Codex IDE Extension or equivalent AI-assisted development extensions

Sr No	Service/License	Technical Specifications
		q) Integration must not require third-party plugins beyond the OEM-supported extensions. r) The Pro Plus license must provide access to GitHub Spark or equivalent rapid application prototyping and AI-assisted development environment s) The solution shall comply with GitHub’s enterprise-grade security and privacy standards t) Source code and prompts shall not be reused or retained beyond stated OEM policies u) The solution must be compliant with applicable Government of India IT and data security guidelines v) All updates, feature enhancements, and new model access released during the subscription period shall be included at no additional cost w) OEM-provided technical documentation and online support resources must be available x) The license shall include standard OEM support for activation, usage, and troubleshooting y) Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. z) All licenses shall be procured and issued strictly in the name of MPPKVVCL only. - aa) Annual Technical Support (ATS), maintenance charges, or any other technical support costs shall not be required to be purchased additionally by the Purchaser. - bb) Any upgrades/updates and patches, of the software/product shall be provided to the Purchaser at no additional cost for the entire duration of the contract period.
1	Microsoft Office Perpetual (Office Home 2024 One-time purchase for PC or Mac)	1. The bidder shall supply Microsoft Office Home 2024 (One-time Purchase) – PC or Mac Genuine, perpetual (non-subscription) Microsoft Office licenses. 2. License shall be one-time purchase with lifetime usage rights for the installed version. 3. License must be new, unused, and directly sourced from Microsoft or an Authorized Microsoft Partner. 4. License shall be activated online and registered in the name of the Procuring Entity. 5. License shall be compliant with Indian Government procurement and audit norms.

Sr No	Service/License	Technical Specifications
		6. The Office suite must include but not limited to following desktop applications, Microsoft Word 2024, Microsoft Excel 2024, Microsoft PowerPoint 2024, Microsoft OneNote 7. License type shall be Perpetual / One-time purchase (no annual or monthly subscription). 8. License shall allow commercial and official government use. 9. License shall not expire and shall not require renewal. 10. Must not have dependency on Microsoft 365 subscription for continued usage. 11. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. 12. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. 13. The offered product shall not reach End of Life (EOL) for a minimum period of three (3) years from the date of purchase/contract commencement. 14. Product support, security patches, bug fixes, and version updates shall remain available during the EOL validity period without any additional cost to the Purchaser. 15. Any recurring, annual, subscription, maintenance, or technical support (ATS) charges shall not be additionally paid by the purchaser. 16. Purchaser shall have full rights of using the Licence even after OEM declared the product End of Life.
2	PDF Generation SDK (Java/ Python) With Local language Support	1. SDK must provide functionality for bulk PDF document generation and processing through backend custom applications. 2. SDK must support Java (version 8 and above) for backend integration. 3. SDK must support local/regional languages, including but not limited to Hindi. 4. SDK must be cross-platform compatible, supporting Windows and Linux (all major distributions). 5. SDK must support comprehensive PDF operations, including but not limited to: 6. PDF creation 7. Split, merge 8. HTML to PDF 9. Watermarking 10. Digital signature and verification 11. The product must be a commercial, off-the-shelf (COTS) solution and not open-source, with a minimum market maturity of 5 years, and a commitment to at least 5 years of future support and updates.

Sr No	Service/License	Technical Specifications
		12. The product should have GUI based PDF/Template design tool. 13. SDK must support unlimited PDF generation and processing, without any hard or soft limits on document count or pages count. 14. Solution must be capable of achieving a minimum throughput of 1,000 PDF operations per second, with a success rate of at least 99.99%. 15. SDK must provide native multi-threading support to enable high-performance parallel processing. 16. Any other free services offered by the OEM and bundled with the product shall be made available to the Purchaser without any additional cost. 17. All licenses shall be procured and issued strictly in the name of MPPKVVCL only. 18. The offered product shall not reach End of Life (EOL) for a minimum period of three (3) years from the date of purchase/contract commencement. 19. Product support, security patches, bug fixes, and version updates shall remain available during the EOL validity period without any additional cost to the Purchaser. 20. Any recurring, annual, subscription, maintenance, or technical support (ATS) charges shall not be additionally paid by the purchaser. 21. Purchaser shall have full rights of using the Licence even after OEM declared the product End of Life.

4. PURCHASER'S RESPONSIBILITIES

- 4.1.** Purchaser will provide respective equipment/servers for installation of licenses on cloud or other Data Centres/ Locations.

5. NON-EXCLUSIVITY OF WORK

- 5.1.** The Purchaser reserves the right to use any other contractor(s) to undertake similar works in the bid area. The selected Agency shall not be entitled for any compensation from Purchaser for such de-scoping of work.

-Sd-
Chief Engineer (Purchase)
MPPKVVCL, Indore

SECTION-III

GENERAL TERMS & CONDITIONS OF PURCHASE

1. DEFINITIONS

In this Bid Document (including all the Sections & Schedules), unless the context otherwise requires, the terms given below shall have the following meanings assigned to them:

- (i) “Addendum” shall mean any other document issued to the bidders in addition to the bid document by the Purchaser in the context of this bidding process.
- (ii) “Agency” shall mean the successful bidder who has received the Letter of Award from the Purchaser to execute the Purchase Order.
- (iii) “Bid/Tender” shall mean the proposal/document that the bidder submits in the requested and specified form as mentioned in bid/tender documents.
- (iv) “Bidder” shall mean the firm/manufacturer/supplier who quotes the offer against a tender or enquiry.
- (v) “BG” shall mean Bank Guarantee.
- (vi) “Companies Act” shall mean The Companies Act, 1956 (as amended or replaced from time to time).
- (vii) “Competent Authority” shall mean the authorised person of the Purchaser.
- (viii) “Division office” Manage and control working of Sub-division office/DCs. Division Office operates under Circle office and have a number of Sub-division office/DCs.
- (ix) “Effective date of contract” shall mean the date of signing of contract agreement.
- (x) “EMD” shall mean Earnest Money Deposit.
- (xi) “Instruction” shall mean any drawings and/or instruction in writing, details, directions and explanations issued by the Purchaser from time to time to Agency.
- (xii) “Purchaser” shall means Madhya Pradesh PashchimKshetraVidyutVitran Company Limited, Indore.
- (xiii) “MPPKVVCL” shall means Madhya Pradesh PashchimKshetraVidyutVitran Company Limited, Indore.
- (xiv) “Authorised Person” shall mean officer authorised by Officer-in-Charge of the Purchaser. For different works, the Officer-in-Charge may appoint a representative who will be the Authorised Person for that Work.
- (xv) “Award of Contract” shall mean the issue of the work order or the Letter of Award, whichever is earlier.
- (xvi) “Business” shall mean activities as further elaborated in Section-II(B): Scope of Work.
- (xvii) “Commencement period” shall mean the period of 30 days from the date of signing of Contract.
- (xviii) “Contract” means the Contract Agreement entered into between the Purchaser and the Agency, together with the Contract Documents referred to therein; all such documents shall constitute the Contract and the term Contract shall in all such documents be construed accordingly.
- (xix) “Contract Price” shall be Price quoted by the Bidder in **Annex-I**, including taxes as applicable at the time of Award of Contract.
- (xx) **“Effective date of contract” shall mean the date of signing of Contract agreement.**
- (xxi) “Instruction” shall mean any drawings and/or instruction in writing, details, directions and explanations issued by the Purchaser from time to time during the Contract Period.
- (xxii) “Month” shall mean calendar month.
- (xxiii) “Notice in Writing” or “Written Notice” shall mean a notice, in written, typed or printed characters sent (unless delivered personally or otherwise proved to have been received) by registered post to the last known private or business address or registered office of the addresses and shall be deemed to have been received when in ordinary course of post it would have been delivered.

- (xxiv) “Officer In-Charge” shall mean the controlling officer nominated by the Purchaser at Corporate level to carry out the functions and obligations of the Purchaser under the Contract.
- (xxv) “Services” shall mean all the services which the successful bidder is required to provide under the scope of work to the Purchaser under the Contract.
- (xxvi) “Successful bidder” shall mean the Bidder who has received the Letter of Award from the Purchaser to execute the Contract.
- (xxvii) “Work Order” or “Letter of Award (LoA)” means written order signed by the Purchaser for award of contract to the successful bidder. This along with Price bid, Specifications (RfP) document and the bidder’s response to RFP shall constitute Part of the Contract.
- (xxviii) “Work” shall include all the services to be provided by the Agency under the “Work Order” or “Contract”.
- (xxix) “Work Plan” shall mean execution plan for activities defined in scope of work provided by the Agency.

2. PURCHASER’S REPRESENTATIVE

- (i) The Purchaser shall appoint an officer/employee designated as the Officer In-Charge, who shall carry out the functions and obligations of the Purchaser under the Contract.
- (ii) The Purchaser may from time to time appoint any other person as the Officer In-Charge in place of the person previously so appointed, and shall give a notice of the name of such other person to the Agency without delay. The Purchaser shall take reasonable care to see that no such appointment is made at such a time or in such a manner as to impede the progress of works / services. The Officer In-Charge / Purchaser shall represent and act for the Purchaser at all times during the currency / validity of the Contract.
- (iii) Any decision, instruction or approval given by the Officer In-Charge shall be binding on the Agency.
- (iv) All notices, instructions, orders, consents, certificates, approvals and all other communications under the Contract shall be given by the Officer In-Charge.
- (v) The Officer In-Charge may authorize its representative(s) as site-in-charge for the works/services.

3. AGENCY’S REPRESENTATIVE

- (i) The Agency shall employ at least one competent representative (name, address, telephone number, identity proof of the representative shall be communicated in writing to the Officer In-Charge /Purchaser by the Agency) to supervise the works/services. The said representative, (or if more than one shall be employed, then one of such representatives), shall be present whenever required and should be approachable in person or on phone at time and location as specified by the Purchaser. Any written order or instruction which the Officer In-Charge or its duly authorised representative may give to the said representative of the Agency shall be deemed to have been given to the Agency.
- (ii) The Officer In-Charge shall be at liberty to object to the presence of any representative or person employed by the Agency for execution of the Contract or otherwise at the site, who in its opinion is found to have misconduct themselves or be incompetent or negligent and the Agency shall remove the person so objected to, upon receipt from the Officer In-Charge /Purchaser notice in writing requiring him to do so and shall provide in his place a competent representative at the Agency’s risk and expense.

4. PRICES AND STATUTORY LEVIES

- (i) It is obligatory that FOR destination FIRM or VARIABLE price as specified in Section-IV: Special Terms and Conditions of Purchase is quoted, clearly giving break-up in the following elements: -
 - (a) Unit Ex-works / Ex-godown rate including packing, Forwarding & Freight-Insurance Charges.
 - (b) SGST as applicable on Ex-works prices as on date of Bidding.

- (c) CGST as applicable on Ex-works prices as on date of Bidding.
- (d) IGST as applicable on Ex-works prices as on date of Bidding.
- (e) Any other levy / taxes. The details and rate to be specified.
- (f) In case of exemption/ concessional GST, documentary evidence shall be furnished with the offer.
- (g) The prices shall be quoted exactly as per the price schedule enclosed with the tender specification, including all elements. In absence of this, the offer shall be liable for rejection.
- (ii) Any charge as may be applicable as per law in force, must be clearly specified otherwise any of such silent charges, shall not be payable in the event of an order.
- (iii) The basic order shall be placed on Ex-factory price inclusive of packing, forwarding & freight-Insurance charges.
- (iv) The payment of statutory levies such as SGST & CGST/ or IGST against the contract shall be made on the basis of rates prevailing during the contractual delivery period only and on applicable quantity due, to be actually delivered as per delivery schedule of contract. In case of the concessional rate of statutory levies are quoted by the bidder, then the same shall be paid limited to the quoted rate. In that case the payment of statutory levies such as SGST, CGST, IGST against the contract to all concerned government departments or any duties to any other organization will be the sole responsibility of supplier on the basis of rates prevailing during the contractual delivery period as per schedule of contract, as well as for any supplies made after the contractual period. Any liability raised by the government authorities due to any difference in the amount payable and consequences thereof the purchaser MPPKVVCL, Indore will not be responsible for any sustained damages by the supplier.
- (v) In case, supplies against the contract are affected late i.e. beyond contractual delivery period and rate of CGST, SGST, IGST undergoes upward revision, the payment will continue to be made only on the basis of rates prevailing during the contractual delivery period. However, in case the rate of statutory levy (ies) undergoes, downwards revision then the delayed supplies beyond contractual delivery period will attract the reduced rate of statutory levy (ies).
- (vi) In case of delay in supply, if the supplier is able to prove that the delay involved is due to force majeure conditions, as detailed in the "Force Majeure" clause, supported with suitable documentary proofs and in case the delay is condoned with specific approval for payment of statutory levies during extended period, supplementary claim for CGST/ IGST/SGST shall be accepted and payment shall be released, accordingly.
- (vii) Pending decision on the request of the supplier, for condition of the delay in delivery, the supplier will claim CGST/ IGST/SGST as per the rates prevailing during the contractual delivery period. In case, this is not done, all financial losses will be to supplier's account.
- (viii) **GST registration number of MPPKVVCL, Indore is 23AADC7397N1ZU.** If any rates of Tax are increased or decreased, a new Tax is introduced, an existing Tax is abolished, or any change in interpretation or application of any Tax occurs in the course of the performance of Purchase order, which directly impacts tax liability of Agency in performance of this Purchase order, an equitable adjustment of the Purchase order value shall be made to take into account any such change by addition to the Purchase order value or deduction therefrom, as the case may be. **However, decision of the Purchaser would be final in this regard.**
- (ix) In case of difference in the quoted HSN Code/Service Accounting Code and quoted rate of GST, final decision of the MPPKVVCL, Indore shall prevail.

5. **PROCESS TO BE CONFIDENTIAL**

This bid document and any other document(s) released, information provided, discussions held, etc., as part of the bidding process, is strictly confidential and must not

be divulged to anyone who is not directly involved in preparation of the bid, and the bidder(s) shall keep all information within this proposal or gained during the bidding or other processes confidential. No information or publicity will be allowed to any third party unless specific written authorization is obtained from the Purchaser.

6. CONFIDENTIALITY OF DATA OR INFORMATION

- (i) It is a condition of this Bid that the information provided herein is for the purpose of enabling prospective bidders to submit proposals to the Purchaser. It may neither be used in any other context nor revealed to any other party not directly involved in the submission of a proposal in accordance with the terms of the specification.
- (ii) Information relating to examination, clarification, evaluation and comparison of bids and recommendations for award of Contract shall not be disclosed to bidders or any other person not officially concerned with such process. Any effort by a bidder to influence the processing of bids or award decision may result in the rejection of bidder's bid.
- (iii) Successful bidder shall be required to sign an undertaking that complete confidentiality shall be maintained and the data available with it will not be shared with any other person.

7. TRANSIT RISK

The Agency shall be fully responsible for the correct, complete and timely **electronic delivery and activation** of all software licenses and subscription services ordered by the Purchaser.

- (a) Licenses / entitlements shall be delivered in electronic form (such as e-mail, OEM portal accounts, license keys, subscription IDs, etc.) in the name of MPPKVVCL, Indore, as per the Scope of Work.
- (b) Any errors, omissions or failures in electronic delivery or activation of licenses shall be rectified by the Agency at its own cost, without any delay, irrespective of the cause.
- (c) The Agency shall coordinate with OEMs, wherever required, to ensure that all licenses are visible and usable in the Purchaser's OEM portal / tenancy within the stipulated time.
- (d) **Rectification of Defective/Inoperative Licenses**

Notwithstanding anything contained elsewhere, the Agency shall undertake full responsibility for ensuring that all software licenses and subscriptions supplied under this contract remain valid, active and usable for the duration of the applicable license / subscription term.

In case any license key, entitlement, subscription, or associated access becomes **inoperative, revoked, incorrectly provisioned or otherwise unusable** due to any reason attributable to the Agency or its OEM / distributor, the Agency shall, at its own cost, arrange for **restoration / replacement / re-issuance** of such licenses within **7 (seven) working days** of intimation by the Purchaser. No additional charges shall be payable by the Purchaser for any such restoration / replacement / re-issuance of licenses during the contract period. Failure of the Agency to restore or replace defective / inoperative licenses within the above period may be treated as a breach of contract and shall attract actions as per "Cancellation / Termination of Order", "Penalties", and other applicable clauses

8. PACKING AND FORWARDING

The clause relating to packing and forwarding for physical goods shall be treated as **Not Applicable**, The Agency shall, however shall ensure that:

All license certificates, subscription confirmations, entitlement details, and related documents are provided in properly structured electronic form (PDF / e-mail / OEM portal), clearly referencing the Purchaser's Purchase Order / Work Order

- (ii) All such documents are complete, legible and suitable for audit, license tracking and compliance purposes

Any change or update in the license entitlement (e.g., renewal, upgrade) is accompanied by corresponding updated documentation

9. MODE OF DELIVERY FOR SOFTWARE LICENSES

The software licenses and subscription services under this contract shall be delivered in electronic form only, unless otherwise specified by the Purchaser in writing.

- (a) Acceptable modes of delivery include, but are not limited to:
 - i License keys / activation codes sent to authorised Purchaser e-mail IDs
 - ii Assignment of subscriptions / licenses in the Purchaser's OEM tenant / portal (e.g., Microsoft 365, Oracle Cloud, Canva, GitHub, etc.)
 - iii OEM portal access granted in the name of MPPKVVCL, Indore, with appropriate administrative rights as per the Scope of Work.
- (b) The Agency shall confirm successful delivery and activation of licenses with SE-IT, IT Cell, Corporate Office, Indore, by sharing relevant screenshots, portal reports or confirmation e-mails, as may be requested.
- (c) No physical shipment is envisaged unless explicitly demanded by the Purchaser for any specific item.

10. SUBMISSION OF TECHNICAL AND LICENSE DOCUMENTATION

The Agency shall submit one set of the following documentation shall be provided in soft copy to SE-IT, IT Cell, Corporate Office, Indore within 30 days of Work Order execution for each line item supplied under this contract:

- a) Product datasheets / technical brochures specifying features, editions, and supported environments
- b) OEM licensing guides / deployment guides relevant to the licensing metric (CPU, user, instance, etc.) and deployment model (on-premises, cloud, hybrid)
- c) Implementation / configuration guides, wherever applicable for items such as Oracle DBaaS, Middleware, SSO & MFA, Microsoft 365, etc.
- d) User guides / admin guides or links to official OEM documentation portals
- e) License entitlement summaries and portal screenshots or equivalent evidence that the licenses have been allocated to MPPKVVCL's tenant / account.

11. FORCE MAJEURE

Force Majeure" shall mean any event beyond the reasonable control of the Employer or of the Contractor, as the case may be, and which is unavoidable notwithstanding the reasonable care of the Party affected, and shall include, without limitation.

Force majeure condition is herein defined as:-

- a) Natural phenomena, such as earthquake, landslide, volcanic activity, fire, flood or inundation, tidal wave, typhoon or cyclone, hurricane, storm, lightning, or other inclement weather condition, nuclear and pressure waves or other natural or physical disaster.
- b) Act of any Government Authority, domestic or foreign, such as war, hostilities or warlike operations whether a state of war be declared or not, invasion, act of foreign enemy and civil war.
Rebellion, revolution, insurrection, mutiny, usurpation of civil or military government, conspiracy, riot, civil commotion and terrorist acts.
confiscation, nationalization, mobilization, commandeering or requisition by or under the order of any government or de jure or de facto authority or ruler or any other act or failure to act of any local state or national government authority.
strike, sabotage, lockout, embargoes, import restriction, port congestion, lack of usual means of public transportation and communication, industrial dispute, shipwreck,

shortage or restriction of power supply, licensing control or production or distribution restrictions, epidemics, quarantine and plague.

- c) Accident and disruptions such as fires, explosions, increase in power cut with respect to date of tender opening, break-down of essential machinery or equipment's etc.
- d) Strikes slow down, lockouts continuing for more than three (3) weeks.
- e) shortage of labor, materials or utilities where caused by circumstances that are themselves Force Majeure."
- f) Failure or delay in the supplier's source of supply due to force majeure causes enumerated at (a) to (d) above, provided the supplier produces documentary evidence to show that there were no other alternative sources of supply available to him or if available, the lead time required was likely to be longer than the duration of the Force Majeure at the normal source of supply.
- g) Any cause which is beyond the reasonable control of the supplier or purchaser as the case may be.

All the provisions of this clause shall apply whether the disrupting cause is total or partial in its effect upon the ability of the supplier to perform.

NOTE :- The cause of force majeure condition will be taken into consideration only if the supplier within 15 days from the occurrence of such delay notifies. The Purchaser shall verify the facts and grant such extension as the facts justify. For extension of delivery period on account of force majeure conditions, the supplier shall submit his representation with documentary evidence for scrutiny by the purchaser and decision of the Purchaser shall be binding on the firm.

12. RECOVERIES FOR LIABILITIES AGAINST OTHER CONTRACTS/ORDERS

All amount recoverable from the successful bidders against any earlier or subsequent contracts/orders including contracts/orders placed on sister concern by the Purchaser will be adjusted/ recovered from any type of payment due against the contracts/orders that may be awarded under this specification OR any other contract(s)/order(s) including the contracts/order placed on sister concern firms placed by Purchaser against other tender specification for the same or the other items.

The Purchaser shall have the option to recover the outstanding dues / liability, if any, against the firm against any contracts / orders from the firm's bills / payments due against the orders / contract placed by other Discoms of MP, which shall be binding on the bidders.

13. COMPLETENESS OF EQUIPMENT

The Equipment shall be completed in every respect with all minor documentation and accessories, even though these may not be specifically mentioned in the purchaser's specifications or the tender's offer. The supplier shall not be eligible for any extra price in respect of such minor things, which can be considered as an essential part of the basic equipment even though not specifically mentioned in the specification or in the offer.

14. PERIOD OF CONTRACT & EXTENSION ORDER

This contract shall be initially for a period of Three (03) Years, the Purchaser may extend the contract period for further two (02) years at each instance of One(1) year on same rates, terms and conditions of the contract on mutual basis.

The other Two Discoms under MPPMCL namely MPEZ , Jabalpur and MPCZ, Bhopal has the right to place an additional order for the works of similar nature on the same rates ,terms and conditions within 36 months form the date of this RCA in their company area (jurisdictional area of MPEZ, Jabalpur or MPCZ, Bhopal) after due approval from their competent authority. All such orders will be completely independent of the total order value (Total Project value) for which award has been issued by MPWZ, Indore under this RCA and the quantity variation clause as mentioned above shall be applicable individually for each Discom

15. QUANTITY VARIATION

During the contract period, The Purchaser reserves the right to increase or decrease up to 50% (Fifty percent only) of contract value and consequent change in the quantity of supplied Items/Software/license & Installation Services specified without any change in ex-work price(s) or other terms & conditions during the execution of the contract. However, the quantities of the individual items and services may vary to any extent without any cap. Payment will be allowed as per actual quantities supplied and as per actual work done provided that, the total payment does not exceed contract amount by 50%.

16. ROYALTIES AND PATENTS

All royalties for patents or any charges for usage or infringement thereof that may be involved in the supply shall be included in the offered price and the supplier shall protect Purchaser against any claim thereof. Supplier is fully responsible for such contractual dealing and purchaser shall not be called upon to bear any such charges.

17. COMPLIANCE OF REGULATIONS

The supplier shall warranty that all Goods covered under procurement shall have been produced, sold, dispatched, delivered, tested, in strict compliance with all applicable Rules, Regulations including Industries (Development and Regulations) Act 1951 and any amendment there under, labour agreements, working conditions and technical codes and requirements, as applicable from time to time.

The supplier should execute and deliver such documents, as may be needed, by the purchaser in evidence of compliance. All laws, Rules and Regulations are required to be incorporated in this reference. Any liability arising out of contravention of any of the laws shall be the sole responsibility of the vendor and the purchaser shall not be responsible in any manner whatsoever.

18. CANCELLATION/TERMINATION OF ORDER

The Purchaser may upon written notice of default, terminate/cancel the purchase order in whole or for a part quantity with recovery of liquidate damages at the rate of 10% of ex-works price(s) liability on account of risk and cost, whichever is higher in the circumstances detailed hereunder:-

- i. If in the opinion of the Purchaser, the supplier fails to deliver the material/ Services within the time specified or during the period for which extension has been granted by the Purchaser.
- ii. If in the opinion of the Purchaser, the supplier fails to comply with any of the other provisions of this order or material is found not in accordance with prescribed specifications and or the approved samples.
- iii. If in the opinion of the Purchaser, the supplier fails to take urgent steps towards corrective measures as indicated/intimated to them as a result of stage inspection.
- iv. In pursuance to clause no. i, ii & iii Above, Purchaser may debar the supplier for further business with Purchaser for a declared period on breach of the Purchase Order.
- v. Notwithstanding that the powers under clause 18 (iv) referred to above, are in addition to the rights and remedy available to the Purchaser under the general law of India relating to Contract.
- vi. In the event, Purchaser does not terminate the order, the supplier shall continue execution of this order, in which case shall be liable to the Purchaser for liquidated damages for the delay as per applicable clause until supplies are accepted.
- vii. The Contractor may terminate the Contract forthwith by giving a notice to the Employer to that effect, if the Employer becomes bankrupt or insolvent, has a receiving order issued against it, compounds with its creditors, or, being a corporation, if a resolution is passed or order is made for its winding up (other than a voluntary liquidation for the purposes of amalgamation or reconstruction),

a receiver is appointed over any part of its undertaking or assets, or if the Employer takes or suffers any other analogous action in consequence of debt.

19. CANCELLATION/ TERMINATION OF ORDER FOR CONVENIENCE

The purchaser shall be entitled to terminate/cancel the purchase order at any time for the balance order quantity which is within the delivery schedule with no liability on either side and without assigning any reason thereof. However, the purchase order for the quantity which has already been offered for inspection shall not be cancelled and supply of the same shall be availed in due course of time.

20. REDUCTION OF RATE DUE TO SUBSEQUENT TENDER

As a result of opening of the subsequent tender of the purchaser, if the rates received for the same item(s) are found to be lower, then the balance ordered quantity as on date of opening of price bid excluding the quantity which has already been offer for pre dispatch inspection, may be accepted at the lower rates only. If the supplier does not agree to supply the balance quantity at the lower rate, the order will be cancelled by the purchaser without liability on either side provided the ordered delivery period of the balance quantity is existing, otherwise the provision of the clause named “Cancellation/Termination of Order” shall be applicable.

21. QUALITY ASSURANCE PLAN

(i) The bidder shall establish and maintain appropriate quality assurance processes for the supply, activation and life-cycle management of all software licenses and subscription services offered under this tender. All software / licenses supplied shall be:

- (a) Genuine, new and legally sourced from the respective OEMs or through their authorized distribution channels
- (b) Supported by valid OEM documentation, including but not limited to License Certificates, Subscription Entitlements, and access to OEM portals as specified in the Scope of Work
- (c) In full conformity with the technical specifications, version / edition requirements, and licensing metrics (CPU / user / subscription etc.) stipulated in the tender.

(ii) The bidder shall provide, on request of the Purchaser, documentary evidence of:

- (a) OEM partnership / reseller status, where applicable;
- (b) License keys / entitlement details issued in the name of MPPKVVCL, Indore;
- (c) Compliance with OEM licensing policies for on-premises, cloud and hybrid deployment as applicable.

(iii) The bidder shall ensure that all patches, updates and upgrades to the licensed software, as released by the OEM during the contract period, are made available to the Purchaser at no additional cost, as specified in the Scope of Work.

(iv) Any non-compliance in supply of genuine licenses, or supply of licenses not conforming to OEM norms / tender specifications, shall be treated as a material breach of contract and shall attract actions as per “Cancellation / Termination of Order”, “Debarring / Blacklisting of Firms” and other applicable clauses of this tender.

22. JURISDICTION

Any dispute or difference, arising under, out of, or in connection with this tender/ Purchase order shall be subject to exclusive jurisdiction of competent court at **Indore** only.

23. SETTLEMENT OF DISPUTES AND ARBITRATION

If any dispute of any kind whatsoever shall arise between the Purchaser and the Supplier in connection with or arising out of the Purchase Order, the parties shall seek to resolve any such dispute or difference in opinion, to the extent possible, amicably by mutual consultation.

If the parties have failed to resolve their dispute or difference by such mutual consultation, then the dispute shall be referred in writing by either party to and settle by Arbitral Tribunal comprising of three Arbitrators, one to be appointed by each party and third Presiding Arbitrator to be appointed by the both the Arbitrators as per provision of Indian Arbitration and Conciliation Act, 1996 as amended from time to time.

The Arbitration shall be conducted as per provision of Arbitration and Reconciliation act 1996 and as amended from time to time, and of the rules made there under. The Arbitrators or the Presiding Arbitrator as the case may be, are bound to give a detailed speaking award assigning reasons for the findings. The decision of Arbitral Tribunal shall be final and binding up on both the parties.

Supplies under the Purchase Order shall be continued by the Supplier during the arbitration proceedings, unless otherwise, directed in writing by the purchaser or unless the matter is such that the work cannot possibly be continued until the decision of the Arbitrator or of the Presiding Arbitrator, as the case may be, is issued.

The Arbitration proceeding if any shall be strictly held at the Head Quarter of Purchaser at Indore.

24. DEBARRING / BLACKLISTING OF FIRMS

That in the event of violation of any of the Terms & Conditions of this tender or the Terms & Conditions of the subsequent supply order / work contract for issued, either partly or completely; then in such event the MPPKVVCL, Indore reserve every right to take penal actions which may, inter alia, include termination of the contract and / or blacklisting and debarring the tenderer from participating in future tender/ tenders for upto 3 years along with any action as deemed fit for recovery for liabilities as stated in the tender document. Before debarring / blacklisting or contract termination, the concerned firm would be first served a notice to the effect, so that it gets an opportunity to represent its point of view.

25. SUBLETTING

Subletting of any work or services is not allowed.

-Sd-

**Chief Engineer (Purchase)
O/o MD (WZ), MPPKVVCL, Indore**

SECTION-IV

SPECIAL TERMS & CONDITIONS OF PURCHASE

1. **PERIOD OF CONTRACT AND OTHER IMPORTANT CONDITIONS OF CONTRACT**

Refer at **clause No.14 of** General terms & conditions of Purchase, Section-III of this tender Document.

2. **RATES**

The bidder will clearly mention their annual/monthly rates for all the line items as specified in schedule-I: PRICE SCHEDULE. This includes the works (as mentioned in Scope of Work), license fee, insurance etc. in its Price Bid (schedule-I: Price Schedule). Such charges shall be quoted taking into account all overhead expenses envisaged by the bidder (not attributable to the Purchaser / Service Recipient) for efficient functioning / execution of Contract.

3. **PAYMENT MILESTONES & TERMS OF PAYMENT**

- (i) The payment of 100% (hundred percent) of the bill value raised will be made within 45 days by the OIC after the completion of all contractual formalities. The bills will be verified by OIC and sent to the CFO/Dy. Director (CBP cell) or respective Sr. Account Officer / Regional Account Officer for payment as per Delegation of Power. The M.P.P.K.V.V.Co.Ltd, Indore shall not be liable for payment of any interest on delayed payment.
- (ii) The MPPKVCL Indore shall make above payment directly in the supplier's Bank account, for which the following details are required to be invariably submitted with the offer in the prescribed schedule / template:-
 - (a) Name of Bank and Branch address.
 - (b) Their Bank Account Number.
 - (c) IIFS Code of the Branch for RTGS transfer.
- (iii) Charges required by Bank in this regard will be debited to supplier's / contractor's Account. Net payment after deduction of charges required by the Bank shall be released in favour of suppliers.
- (iv) **Payment Schedule:**

S. No.	Components	Milestone	Payment
1	Payment Against Work Order(s) issued by Consignee against RCA [Consignee will issue Work orders for new requirements as and when required. Said Work order contains the required quantity of Components quoted in Schedule-I of Price Schedule]	Milestone: Supply of Items/ Services as per Work Order issued	The payment shall be made on submission of the bills on quarterly basis. Payment shall be made only on the basis of actual consumption of services/Item supplied, duly supported with the requisite details of services. For License as a Service: Payment will be made quarterly on the actual supplied items/Services. For Perpetual License: Payment will be made actual quantity supplied as per work order issued. Document required: Items/Services Delivery report

- **Quarters will be considered as 1st April to 30th June, 1st July to 30th September, 1st October to 31st December & 1st January to 31st March. If any order operationalize on**

the date deferred from quarter starting date will be billed with next quarter & deferred dates will be billed on pro-rata basis.

- **Indicative Example to explain Quarterly payments.** If the contract commences on 8 Feb, then Invoice shall be generated for the period of 8th Feb to 31st March, for the first quarter.
- **For Licenses procure against one time cost, payment will be made in Quarter in which licenses will be delivered and apart from this onetime payment, no further payment will be made against these licenses.**
- Bidder is expected to submit the bill for work order issued on the basis of their monthly quoted price. Quarterly invoices will be raised during the project tenure.
- Bidder must submit Items/Services Delivery report with quarterly bills.
- Line items mentioned in price schedule are mentioned for rate contract purpose which will valid till contract duration. Quantities mentioned in price schedule are indicative and mentioned only for evaluation purpose. Payment will be made against actual quantity ordered.
- Estimated Quantity as mentioned above may be varied in line with quantity variation clause of this tender.
- The payment shall be made in full after the satisfactory completion/rendering of the work/service. The payment will be made after due verification of the services rendered as per the terms, conditions and SLA laid down in the contract. Excess payment and penalties if any, shall be deducted before payment.

On delay in Supply of licenses:

The time & date of completion of work shall be deemed to be the essence of the contract. In case of delay in execution of the order (i.e. delayed supplies from the delivery schedule), the Purchaser, at its discretion, shall recover from the Agency as penalty, a sum equal to ½ % (i.e. 0.5%) of the Ex-works price of quantity, for every week of delay. For the purpose of this clause, part of a week shall be considered as full week. However, maximum penalty under this clause shall be restricted to 10 % of the Ex-works value. This will be without prejudice to other remedies available to the Company as per the laws of India, or terms of this Tender.

In addition to the above, depending upon gravity of default of the Agency in fulfilling its contractual liabilities, the Company may consider debaring the Agency for a period of three (3) years from any future Business with the Purchaser.

4. **CONSIGNEE**

The consignee for all the deliverables shall be SE-IT, IT Cell, Corporate office, Indore. Deliverables shall be handed over to SE-IT, IT Cell, Corporate office, Indore after successful completion of the activities. Completion report duly signed should be issued to agency by SE-IT, O/o MD, MPPKVVCL, Indore.

5. **COMMENCEMENT OF WORK**

Delivery Schedule

S.No	Parameter	Timeline
1	Signing of Agreement.	D0
2	Work Order issued by Consignee	D1
3	Item Delivered/ Services Start after Work Order issued by consignee	D2=D1 +30 Days
4	Contract Period	D0+ 3 Years

6. **SECURITY DEPOSIT**

Bidders shall require to furnish security deposit in two parts as detailed below:

- (i) Initial Security deposit in the form of BG/DD and in the name of Purchaser within 40 days from the date of issuance of letter of rate contract award @ 1% of the Contact Value. The Bank Guarantee towards Security Deposit should be from a scheduled bank with validity of 68 month so as to cover the guarantee period of the material and also due and faithful execution in accordance with terms and conditions of the order.
- (ii) Additional Security deposit equal to 9% of value of the individual work order placed against the Rate Contract Award (RCA) may be remitted either through deduction from their bills/invoices or in the form of DD/ BG with validity of remaining contract period plus three months, so as to cover the performance guarantee period of the tender services.
- (iii) On receipt of Initial Security deposit BG/DD, EMD will be refunded without any interest.
- (iv) The purpose of Contract Performance Guarantee is to cover the risk of business. It is a pre-estimation of losses occurring to Discom due to non-performance of the Agency. No further liability towards risk purchase shall be levied if the CPG is of sufficient amount.
- (v) Within Thirty (30) days of issue of letter of rate contract award, the successful bidder(s) shall furnish requisite Contract performance guarantee which could be invoked at any branch of the bank, extending the guarantee, in MP and also execute an agreement on the prescribed form duly stamped for the due and proper fulfilment of the Contract. The cost of stamp paper including cost of revenue stamps and stationery charges shall be borne by the Agency.
- (vi) Failure by the successful bidder to furnish the prescribed Contract Performance Guarantee or to execute the agreement within the period specified in Bid document after its bid has been accepted or notice to start the work within such time as is determined by the Engineer-in-charge/Controlling officer after notification of the acceptance of the bid shall entail action as deemed appropriate by the Purchaser including forfeiture of the earnest money deposit (EMD), cancellation of the Contract, blacklisting of bidder, etc..
- (vii) The Contract performance guarantee shall only be released by the Chief Engineer (Purchase) subject to an undertaking by the Agency stating successful completion of Contract along with certificate from Officer-In-Charge of the Purchaser stating that all statutory compliances have been made successfully.

7. PENALTY FOR BREACH OF PURCHASE ORDER

Breach of any Terms & Conditions which are included in the any section of the tender documents, or various schedules, Section, enclosures, appendix etc. which are referred in these sections, shall be deemed as breach of this Purchase Order. In case of breach of this Purchase Order by the bidder/vendor, the Purchaser shall be entitled to forfeit the available security deposit and to realize & retain the same as damages and compensation for the said breach. This will be without prejudice to the right of the Purchaser to recover any further sums as damages, from any sums which are due or which may become due to the Agency by the Purchaser; or otherwise howsoever.

8. PERFORMANCE GUARANTEE

- i. If during the course of **40 months** subsequent to the date of receipt & successful commissioning of material/items, at our consignee stores, any of the goods found to be defective in materials or workmanship or develops defects during service, they will have to be replaced / repaired by the suppliers free of all charges. All necessary arrangements on this account will be made by the suppliers.
- ii. The said material if required to be replaced / repaired, shall be collected by the supplier/firm from Consignee Stores at their own cost and at their own responsibility. These material will like-wise be returned duly repaired / replaced and tested subsequently by the supplier to the destination indicated on freight paid basis at their cost in a reasonable time of **30 days (1 month)** from the date of first intimation made by the concerned Consignee Stores.
- iii. Unit once failed/defective within guarantee period and returned to Consignee Stores duly repaired/replaced free of charges shall be guaranteed for a minimum of 12 months or un-

- expired guarantee period left as on the date of failure/defective of the unit, whichever is later.
- iv. In case unit is subsequently failed within 12 months, then unit shall have to be repaired/replaced again free of charges, by the supplier.
 - v. Further, it is clarified that all the charges towards carrying out repairs including packing / forwarding, loading / unloading shall be borne by the supplier. The amount deposited under security deposit clause shall also cover the performance guarantee of repaired / replaced units.
 - vi. To & fro transportation cost of such failed/defective material/items shall be borne by the supplier.
 - vii. In the event of the supplier's inability to adhere to the aforesaid provisions, suitable penal action will be taken against them which may inter-alia include debarring of the firm for future business with the Company for a certain period.
 - viii. The defective supply of equipment/material should be replaced by the bidder concerned free of all charges at the earliest but in any case within **one month** from the date of intimation by the consignee. In case defective items are not replaced and returned to the consignee within the prescribed period as above, the Purchaser shall recover the cost of the items towards liquidated damages /repairing charges as detailed below:-
 - A. In case the replacement is not made within a period of **one month** from the date of issue of first intimation letter by the Consignee, penalty shall be recovered as agreed towards liquidated damages @ **0.5% of Ex-works price** of any item/Machines not delivered duly repaired per week or part thereof subject to maximum of **5% of Ex-Works price**. If the bidder fails to supply the duly repaired WGP defective items/machines duly repaired within **Four & Half** months from the date of issue of first intimation Letter then the Consignee at its option will take action as detailed below:-
 - a) **If the WGP failed items are lying with the firm:-** To recover from the bidder the cost of the supplied failed items inclusive of all taxes, freight etc. for the items which are lying at the firm's works.
 - b) **If the WGP failed items lying at Consignee Stores:-**
 - B. If the item is got repaired from the other bidder then the repairing and other charges paid to the other firm shall be recovered.
 - C. If the item is declared un-repairable by the other repairing units, then the cost of the items inclusive of all taxes, freight etc. shall be recovered from the bidder.
9. **SUSPENSION/BANNING OF BUSINESS DEALINGS**
 Suspension / Banning of Business Dealings with supplier/ contractor/vendor/Service provider may be resorted to for serious lapses in performance/ misdemeanours, such as abandoning the work without completion, in timely execution of the contracts, resorting to unfair means (including false certification), adoption of unethical business practices, furnishing manipulated documents, etc.
10. **CONTRACT AGREEMENT**
 The firm shall execute an agreement within Thirty (30) days from the date of issue of this order with the SE (IT) O/o MD (WZ) MPPKV V Co. Ltd., Indore in the prescribed form/Performa duly stamped as required for proper fulfillment of the Contract. The cost of stamp paper including cost of revenue stamps and stationery charges shall be borne by the Firm.
 In case of Non-submission of security deposit (SD) and/or Non execution of the contract agreement within the stipulated period or period allowed thereafter, actions as per the clause named "Suspension/Banning of Business Dealings (for 3 years)" and other terms / conditions of the tender as annexed shall be applicable.
11. **PRICE VARIATION**
 Price variation is not allowed.

-Sd-
Chief Engineer(Purchase)
O/o MD (WZ), MPPKV VCL,
Indore

SECTION-V
LIST OF CONSIGNEE STORES & ACCOUNT OFFICES

Sr. No	Name of Consignee	Contact No.	Address	Respective RAO
1	The SE (IT) Cell	Phone No.0731-2426240 Mobile No.8989983750	GPH Campus Pologround MPPKVVCL, Indore	the CFO/Dy. Director (CBP cell) or respective Sr. Account Officer /Regional Account Officer, Indore

-Sd-
Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore

SECTION-VI
LIST OF SCHEDULED BANKS

S. No.	Name of Sr. Accounts Officer/ Regional Accounts Officer	Name of Bank
1	Indore	State Bank of India, SME Branch, Udhog Bhawan, Pologround, Industrial estate, Indore-452015 MP

-Sd-
Chief Engineer (Purchase)
O/o MD MPPKVVCL, Indore

SECTION-VII
SCHEDULE-I: PRICE AND QUANTITY
TO BE FILED ONLINE IN ENVELOPE- C

WE QUOTED OUR LOWEST RATES AGAINST TENDER SPECIFICATIONS AS UNDER:-

Name of Bidder								
Category A								
S.N.	Item	Unit	Estimated Quantity	Unit Price Without GST (In Rs/unit)	GST %age on Per Unit Cost			Unit Price with GST (In Rs/unit)
					SGST (in %)	CGST (in %)	IGST (In %)	
A	B	C	D	E	F	G	H	I=E+E(F+G+H)%
License As a Service								
A-1	Oracle DB as a Service (Oracle Database Cloud Service - Enterprise Edition)	CPU/Month	30					
A-2	Oracle DB license with RAC & Data Guard as a Service (Oracle Database Cloud Service - Extreme Performance)	CPU/Month	10					
A-3	Middleware Oracle App. (Oracle WebLogic Suite for Oracle Cloud Infrastructure)	CPU/Month	5					
A-4	Oracle for Single Sign-on & MFA (Identity and Access Management - Premium)	User/Month	4000					

Name of Bidder								
Category B								
S.N.	Item	Unit	Estimated Quantity	Unit Price Without GST (In Rs/unit)	GST %age on Per Unit Cost			Unit Price with GST (In Rs/unit)
					SGST (in %)	CGST (in %)	IGST (In %)	
A	B	C	D	E	G	H	I	J=E+E*(G+H+I)%
License As a Service								
B-1	Microsoft 365 as a service (Microsoft 365 E3 Enterprise)	User/Month	450					
B-2	Microsoft 365 as a service (Microsoft 365 E3 Enterprise) With Microsoft 365 Copilot Addon	User/Month	50					
License Perpetual								
B-3	Microsoft Office Perpetual (Office Home 2024 One-time purchase for PC or Mac)	Nos	500					

Name of Bidder								
Category C								
S.N.	Item	Unit	Estimated Quantity	Unit Price Without GST (In Rs/unit)	GST %age on Per Unit Cost			Unit Price with GST (In Rs/unit)
					SGST (in %)	CGST (in %)	IGST (In %)	
A	B	C	D	E	F	G	H	I=E+E(F+G+H)%
License As a Service								
C-1	Canva Design & PDF Tool (Canva All in one Visual Suite for Business)	User/Month	10					

Name of Bidder								
Category D								
S.N.	Item	Unit	Estimated Quantity	Unit Price Without GST (In Rs/unit)	GST %age on Per Unit Cost			Unit Price with GST (In Rs/unit)
					SGST (in %)	CGST (in %)	IGST (In %)	
A	B	C	D	E	F	G	H	I=E+E(F+G+H)%
License As a Service								
D-1	Git Hub Co Pilot Individual (Git Hub Co Pilot Individual Pro)	User/Month	10					

Name of Bidder								
Category E								
S.N.	Item	Unit	Estimated Quantity	Unit Price Without GST (In Rs/unit)	GST %age on Per Unit Cost			Unit Price with GST (In Rs/unit)
					SGST (in %)	CGST (in %)	IGST (In %)	
A	B	C	D	E	F	G	H	I=E+E(F+G+H)%
License Perpetual								
E-1	PDF Generation SDK (Java/Python) With Local language Support	Nos	1					

NOTE-

1. GST Registration Number of Bidder -(Enclose copy of Registration Certificate).
2. GST Registration Number of Madhya Pradesh Paschim Kshetra Vidyut Vitran Company limited is - **23AADCM7397N1ZU**.
3. The bidder shall fill rate either of CGST & SGST or IGST as applicable.
4. The prices are to be filled strictly in this format only.
5. Responsibility of any lack of clarity leading to confusion will rest with bidders.
6. Rates in various tapering steps shall not be considered.
7. The UNIT of measurement for quoting rate of the item/ services specified in the above Price Bid schedule should be noted carefully before quoting rate(s). The unit shall remain un-changed & applicable as per the above schedule and quoted rate shall be considered only as per the above specified unit(s) for purpose of comparison as well as placement of order. The bidder shall be bound to accept the same; else EMD shall be forfeited and if EMD is already exempted, amount equivalent to the EMD required in the tender will have to be deposited to MPPKVVCL Indore otherwise such firm shall be kept disqualified for TWO (2) future tenders of MPPKVVCL for same/similar item(s), reserving rights of other actions as per provisions of the tender & law of contracts.
8. Any variation in rate of GST during contractual delivery period shall be borne by company (Purchaser).
9. Any downward variation in rate of GST beyond contractual delivery period shall be pass on to company and upward variation shall be borne by bidder firm.
10. Input credit has been considered under the provision of relevant act while submitting the above rates.
11. The total amount of individual Category shall be considered as inclusive of all taxes & duties for that item/service no other taxes shall be payable.
12. No column shall be left blank, mentioned zero if not applicable.

13. If user wants to enter any decimal value than please enter as per given example i.e. "0.4" instead of ".4"
14. It may be noted that Payment for works to be performed under this contract shall be released at contracted rates for aforesaid tasks only. Therefore, charges for all other activities to be performed under this contract as per Section SECTION-II (B)-“Scope of Work”, must be included in the rates quoted for above by the service provider.
15. **Licence must be CPU based and CPU/ Processor shall be termed as Physical Core instead of virtual CPU (For more details, please refer technical specifications).**
16. **The evaluation of lowest (L-1) rate is based on total amount computed for each category and bidder must be quoted all line item of that category, if bidder left any item of that particular category will be disqualified. The bidder may participate in individual category or all five categories. If any bidder does quoted wrong/left/mislead rate for any line item of individual category, then their EMD shall be forfeited.**
17. **Quoted cost for all licenses are inclusive of Annual Technical Support Services from OEM for specified period.**

Signature of Bidder with Seal of Firm :
Place- Name (in full) :

SECTION- VII
SCHEDULE – II (A)

SCHEDULE OF QUESTIONNAIRE PART “A”: GENERAL INFORMATION
(TO BE KEPT IN THE ENVELOPE PART-II, (COMMERCIAL/TECHICAL BID))

(i) Separate sheets should be used, wherever necessary.

Sl. No.	Particular	Reference/Unit	To be filled by Bidder
1.	Name & Address of the firm/Company etc		
(a)	Bidder participating as (Manufacture/supplier/Service Provider) bidder		
(b)	Registered office		
(c)	Factory/ works address		
(d)	Telegraphic address	Office ----- Works - -----	
(e)	Telephone Nos.	Office ----- Works - -----	
(f)	Fax Nos.	Office ----- Works - -----	
(g)	Email		
2.	Confirm whether bidder is a Manufacturer	Yes / No.	
3.	Only Manufacturer to give following Particulars		
(a)	Address of factory		
(b)	Year of starting manufacture		
(c)	Whether same / similar materials Manufactured / printed earlier, (if yes, give reference		
(d)	Yearly Manufacturing Capacity		
(e)	Maximum yearly Manufacturing achieved so far		
(f)	Balance Spare Manufacturing capacity for this tender		
4.	Whether the firm is an MP SSI Unit	Yes / No	
(a)	If yes, write registration No.		
(b)	Whether documentary evidence regarding registration enclosed		
(c)	Items of registration		
(d)	Period of Registration		
(e)	Furnish latest copy of competency certificate	Yes/ No	
5.	(a) Whether the bidder is old participant with MPSEB or its successor companies	Yes/ No	
(b)	If yes, whether document evidence enclosed.		
6.	Any other information that bidder If yes, whether document evidence enclosed.	If yes, give details may like to give in order to highlight his bid	

7.	Please confirm whether you have participated as a New Bidders bidder for trial order.	Not applicable	
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PLACE:

SIGNATURE OF BIDDER

NAME IN FULL

DATE

DESIGNATION/ STATUS IN THE FIRM

COMPANY SEAL

SECTION- VII
SCHEDULE – II(B)

PART “B”: COMMERCIAL INFORMATION
(TO BE KEPT IN THE ENVELOPE PART-II, (COMMERCIAL/TECHICAL BID))”

(i) Separate sheets should be used, wherever necessary.

Sl. No.	Particular	Unit/Reference	To be filled by bidder
1.	i Earnest Money details		
	ii (a) Amount of EMD	Rs.	
	(b) Particulars/details		
	iii If exempted, state whether the bidder is	SSI Unit of M.P. only.	
	iv Whether reference of documentary evidence regarding exemption enclosed.	Yes/ No	
	v Whether the firm is registered under MSME Act.		
2.	Whether the offer is valid for 180 days from the date of opening of commercial / technical bid	Yes/ No (If no, state validity period).	
3.	State whether the quoted prices are Firm/ Variable		
4.	Mode of dispatch	By Rail/By Road	
5.	PAYMENT TERMS		
	Whether Purchaser's terms of payment is acceptable to the bidder.	Yes/ No	
6.	DELIVERY PERIOD		
	Whether agreeable to Purchaser's Delivery Clause.	Yes/ No	
7.	PENALTY CLAUSE		
	Whether agreeable to Purchaser's penalty clause.	Yes/ No	
8.	GUARANTEE PERIOD		
	Whether agreeable to Purchaser's guarantee clause.	Yes/ No	
9.	SECURITY DEPOSIT		
	a Whether agreeable to furnish Security deposit @10% of value of order for satisfactory execution of the order and to cover guarantee period.	Yes/No	
10.	EXTENSION ORDER		
	Whether Purchaser's terms of extension order is acceptable to the bidder.	Yes/ No	
11.	Whether rates offered are applicable for part quantities also.	Yes/ No	

12.	Have you noted that you have quoted prices in the desired format		
13.	Please mention the quantity quoted in the Price Schedule-I (Rating & size-wise, if any).	Item wise Tendered Quantity	
14.	Please furnish information in respect of firm's Bank Account in support of payment term.		
	(i) Name of Bank and Branch address.		
	(ii) Firm's Bank Account Number.		
	(iii) IFS code of the Branch for RTGS transfer.		
15.	Whether your firm is an individual / proprietorship / partnership / or any other type		
16.	Copy of GST Registration with Number		
17.	Indicate PAN No. (with copy)		
18	Details of Tax quoted (Whether exemption or concessional rate support with necessary document)		
A	CGST		
B	SGST		
C	IGST		

PLACE:

DATE

SIGNATURE OF BIDDER

NAME IN FULL

DESIGNATION/ STATUS IN THE FIRM

COMPANY SEAL

SECTION-VII
SCHEDULE – III: UNDERTAKING

(TO BE KEPT IN THE ENVELOPE PART-II i.e. COMMERCIAL/TECHNICAL BID)

The following declaration/Undertaking must be submitted by all the bidders on Rs. 500/- Non-judicial stamp paper (issued in the name of the participating bidder) duly notarized

I (Name of Authorized Signatory) of the participating firm M/s.....
having its Registered Office/Head Office at Give an undertaking;

1. That, M/s have participated against TS No. due for opening on For (Tender Subject).....
2. That, I have gone through the tender document and aware with all the requirement of the tender specification.
3. That, the profile of M/s is as under:-
 - (a) Address of factory/works-
 - (b) GST Registration No. of the firm -.....
 - (c) PAN No. of the firm -
 - (d) Entrepreneurs Memorandum Number (If registered under MSME Act 2006) –
.....
 - (e) E-mail address of the firm -
 - (f) Authorized Signatory Name.....
 - (g) Mobile No. -.....
 - (h) Name & Branch address of bidder banker -
 - (i) Bank Account of the firm -
 - (j) IFSC Code of the branch for RTGS -

4. That the details of owner / partners / Directors (as the case may be) of the bidding firm is as under:-

Sr. No.	Name of Owner / Partners / Directors	Address of Owner / Partners / Directors	Mobile Numbers of Owner/Partners/Directors	Director Identification Number (DIN), if applicable

(No. of rows may be inserted as required)

5. That I/We undertake that we have participated in the tender as (New / Regular bidder, whichever is applicable).
6. That as against tendered quantity the bidding firm have submitted their bid for (indicate quoted quantity).
7. That I/We undertake that we will provide /supply(documentary evidences in this regards shall be submitted before commencement of supply).

8. That I/We confirm that there is no deviation with the commercial terms & conditions and technical requirement of the Tender Specification.
9. That the bidding firm M/s..... have supplied following items to the different Discoms/SEBs/Power Utilities in any of the state of country or through turnkey contractors to any of the Discoms of MP only in past 60 months from the date of opening of tender :-

S N	Period of supply	Name of item	Name and address of purchaser	PO No. and date	Qty. under order	Qty. supplied
1	2	3	4	5	6	7

(No. of rows may be inserted as required)

10. That, the information given by us as above is true and correct and the same has been extracted from the relevant POs/Invoice/MRCs/Receipted Delivery Challan maintained by the firm.
11. That the MPPKVVCL will have full right to cancel the order, if awarded and forfeit the EMD / Performance SD as applicable in event if finds that the information given at Sl. No. 8 is misleading or false, even at a later date i.e. after opening of Price Bid/Award of Order.
12. **I/We hereby confirm & accept that this tender will be processed through Reverse Auction.**

13. “Regarding Black listing/ Debarring of the firm ”

We hereby undertake and submit the declaration that our firm/company is not debarred/black listed for future business with Discoms of M.P./MPSEB/other successor Companies formed after restructuring of MPSEB.

In case, at any stage if the above declaration is found false or incorrect, the Purchaser shall be free to take any punitive/legal action against us, as may be deemed fit , which shall be acceptable/binding on us and the consequences shall be to our account.

14. “Regarding No Conflict of Interest and about the information/details given”

I/We, the sole proprietor / partners / Directors (details, as per the table given hereunder) of M/s, participating in the bidding process against tender No..... of Purchaser due for opening on ____/____/____ undertake that I/We am/are not interested as a proprietor and/or partner in any other firm and/or Director in any other company participating in the tender for procurement of....., and specifically undertake that our firm/Company:

- (i) Not follow & shall not follow unethical/unfair/fraudulent practice in any manner.
- (ii) Has **no conflict of interest** with any bidder/firm participating in the tender.
- (iii) Not concealing any material information.
- (iv) Not given any misleading fact or statement in the offer/bid submitted against the tender.
- (v) Has not been debarred/ blacklisted for future business with Purchaser/other Discom of MP.

Sr. No.	Name of Owner / Partners / Directors (as the case may be)	Designation	Signature

(No. of rows may be inserted as required)

15. Regarding Type Test report (if applicable)

We confirmed that type test report enclosed with our proposal is not issued by;

- i. Our own NABL Accredited Testing Lab; or
 - ii. By any of our sister concern's Lab having commercial relations with the us;
- or

16. **“Regarding Serving Officer(s) or Employee(s) of the MP Discom ”**

We confirm that no Serving Officer(s) or employee(s) of the **MP** Discom is/are Proprietor/Partner(s)/Director(s) of the firm/company or having controlling shares or has controlling interest in the firm. It is also confirmed that no Proprietor/Partner(s)/Director(s) of the firm/company has any close relationship (spouse, son, daughter, father, mother or brother) with any serving Officer(s) or Employee(s) of the **MP** Discom.

Further, the **MPPKVVCL, Indore** will have full right to cancel the Purchase Order, if awarded and forfeit the EMD/Bid Security & Performance Guarantee as applicable in the event of the above condition/situation is observed, even at a later date i.e. after opening of Price Bid/award of Purchase Order.

17. I/We hereby undertake that I/we have not altered/deleted/added any term & conditions, technical specification & Guaranteed Technical Particular of Materials/equipments, etc. incorporated in tender specification (TS No.MD/WZ/06/PUR/TS-1934) uploaded by MPPKVVCL Indore on the MP tender portal <https://mptenders.gov.in>. I/We further undertakes that during the process of evaluation (or later on during execution) if, any altered/deviation/addition is observed in our submitted offer (with respect to uploaded tender document), the MPPKVVCL Indore will have full rights to reject our submitted offer and may take the action as deemed fit in accordance with the terms & conditions of the tender specification.

SIGNATURE OF TENDERER

NAME IN FULL

DESIGNATION / STATUS IN THE FIRM

COMPANY SEAL

SECTION-VII
SCHEDULE-IV

DECLARATION – I

I, Sole proprietor/ partner of M/s. is giving undertaking that details given are correct to the best of my knowledge and I agree to abide by all your tender/order terms and conditions in the event of situations viz unfair/unethical practice by the me/my firm, provisions relating conflict of interest, concealing of any material information by the me/my firm, misleading fact or statement by me/my firm in the offer/bid the Company have right to forfeit the EMD or Performance Guarantee as applicable, even at a later date i.e. after opening of Price or placement of Purchase order.

DATE : (AUTHORISED SIGNATORY)

PLACE : NAME :

DESIGNATION:

SEAL OF THE FIRM:

SECTION-VII

SCHEDULE-V

DECLARATION – II

**(TO BE KEPT IN THE ENVELOPE PART-II ONLINE i.e.
COMMERCIAL/TECHNICAL BID)**

(To be on Rs.100/- non judicial stamp duly Notarized)

I/We hereby undertake that I/we have not altered/deleted/added any term & conditions, technical specification & Guaranteed Technical Particular of Materials/equipment's, etc. incorporated in tender specification (TS No.MD/WZ/06/PUR/TS-.....) uploaded by MPPKVVCL Indore on the MP tender portal <https://mptenders.gov.in>.

I/We further undertakes that during the process of evaluation (or later on during execution), if any altered/deviation/addition is observed in our submitted offer (with respect to uploaded tender document), the MPPKVVCL Indore will have full rights to reject our submitted offer and may take the action as deemed fit in accordance with the terms & conditions of the tender specification.

Dated the [Insert date of the month] day of [Insert month, year] at [Insert place].

Signature {of Bidder's authorized Bid Signatory (ies)}[#] {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title / position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium / JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

[#]{for a joint venture, or only the authorized signatory, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

SECTION-VII
SCHEDULE-VI (A)
PART "A"
SCHEDULE OF PAST EXPERIENCE

To,
The Chief Engineer (Purchase),
M. P. PaschimKshetraVidyutVitaran Co. Ltd,
G.P.H. Compound, Pologround,
Indore (MP)

Dear Sir,

Sub: - **Past supply experience.**

We furnish herewith the record of our past supply experience of quoted items as follows:-

Sl. No.	Year	Purchaser's Name and Address (as per clause 1.2 (ii) of Section-II)	Order Number and Date	Ordered Quantity	Quantity supplied	Value of Order
1	2	3	4	5	6	7
1	FY 2022-23					
2	FY 2023-24					
3	FY 2024-25					
	Total quantity supplied by bidder					
	Tender Quantity in instant tender					
	Total quantity supplied against tender quantity (%)					

It is certify that the M/s..... is meeting all the technical criteria's as mentioned under clause-1.1 & 1.2: Qualification Criteria of Section-II and all information given as above is true.

SIGNATURE OF BIDDER
NAME IN FULL
DESIGNATION/ STATUS IN THE FIRM
COMPANY SEAL
Date & Place

Note: - If any information as mention above given by the bidder/Supplier is found false/ forged or incorrect, the purchaser shall be free to take any punitive / legal action against the bidder.

SECTION-VII
SCHEDULE-VI (B)
PART "C": SCHEDULE OF FINANCIAL INFORMATION
(TO BE FILED ONLINE IN ENVELOPE-B)

Bidder's Name & Address:

To,

The Chief Engineer (Purchase)
O/o MD (West Zone)
MPPKV V Co. Ltd.,
G.P.H. Compound, Pologround Indore.

Sub: - Financial Information.

Sr. No.	Years	Annual Turn over (In Rs. Lacs)
1	2020-21	
2	2021-22	
3	2022-23	
4	2023-24	
5	2024-25	
Aggregate (1+2+3+4+5)		

Place-

Signature of Bidder with Seal of Firm:

Date-

Name (in full):

Designation:

SECTION-VII

SCHEDULE-VII (A)

PART "A"

SCHEDULE OF COMMERCIAL DEVIATIONS

Bidder's Name & Address:

To,

The Chief Engineer (Purchase),
M. P. Paschim Kshetra Vidyut Vitaran Co. Ltd,
G.P.H. Compound, Pologround,
Indore (MP)

Dear Sir,

Sub: - **Commercial Deviations.**

The commercial Deviations & variations to the specifications stipulated in the tender, for the item quoted are, as under:-

Sl. No.	Condition	Clause No. of tender document	Page No. of Tender document	Statement of deviations and variations
1	2	3	4	5

2. Except aforesaid deviations, the entire order, if placed, on us shall be executed in accordance with your specifications and any other conditions, variations/deviations etc. if found, elsewhere in our offer should not be given any considerations while finalizing the tender.

PLACE:

SIGNATURE OF BIDDER

DATE

NAME IN FULL

DESIGNATION/ STATUS IN THE FIRM

COMPANY SEAL

Note: - Continuation sheet of like size & format may be used as per bidder's requirements and shall be annexed to this schedule.

SECTION-VII
SCHEDULE- VII (B)
PART "B"
SCHEDULE OF TECHNICAL DEVIATIONS

Bidder's Name & Address:

To,

The Chief Engineer (Purchase),
M. P. Paschim Kshetra Vidyut Vitaran Co. Ltd,
G.P.H. Compound, Pologround,
Indore (MP)

Dear Sir,

Sub: - **Technical Deviations.**

The Technical Deviations & variations to the specifications stipulated in the tender, for the item quoted are, as under:-

Sl. No.	Condition	Clause No. of tender document	Page No. of Tender document	Statement of deviations and variations
1	2	3	4	5

2. Except aforesaid deviations, the entire order, if placed, on us shall be executed in accordance with your specifications and any other conditions, variations/deviations etc. if found, elsewhere in our offer should not be given any considerations while finalizing the tender.

PLACE:

SIGNATURE OF BIDDER

NAME IN FULL

DATE

DESIGNATION/ STATUS IN THE FIRM

COMPANY SEAL

Note: - Continuation sheet of like size & format may be used as per bidder's requirements and shall be annexed to this.

SECTION-VII
SCHEDULE – VIII
CHECK LIST

**(TO BE KEPT IN THE ENVELOPE PART-B, “COMMERCIAL/TECHNICAL
BID” & UPLOAD ONLINE ALSO)**

Sr. No.	Check List Item	Submitted Or not (Yes/No)	Name of PDF file uploaded by your firm on E-portal	Page No. of uploaded PDF file	Remark if any
1.	Whether “Earnest Money Deposit” of specified amount is kept in a sealed envelope-A & the same is uploaded online.				
2.	Whether NSIC/SSI/UAM/Udyam/DIC Registration Certificate is attached				
3	Whether confirmation certificate prodving bidder is a Manufacturer/Service Provider is attached				
4.	The bidding is open to Companies registered in India under companies Act 1956 or Companies Act 2013.				
a	Scanned copy of Certificate of Incorporation, Certificate of Commencement of Business, and Certificate of change in name if applicable.				
b	Scanned Copies of Memorandum & Articles of Association of the Company.				
c	List of its present directors along with their name, address, telephone/ mobile number and PAN duly signed by any Director of Company.				
d	Signed copy of Board resolution (by two directors at least) authorizing the Director(s) or any employee(s) of the Company or Authorized Person(s) acting on behalf of the company to execute bid document(s) and other correspondence with the Purchaser. In case of authorized person is an employee of the company then the same shall be supported by a suitable Power of Attorney on Rs. 1000/- Non–Judicial Stamp paper.				
5	Partnership Firm registered with Registrar of firms and societies in India.				
a	Notarized Copy of certificate of registration of firms and societies.				
b	Notarized Copy of partnership deed.				
c	List of partners of the firm duly signed by any partner.				
d	Authority letter or consent letter signed by all partners in favour of any partner or any employee(s) of the firm or authorized person(s) acting on behalf of the firm, same				

	shall be supported by a suitable Power of Attorney on Rs. 1000/- Non-Judicial Stamp paper.				
6	Is company or firm in operational for last 5 years-? The period of last five years will be calculated from the date of bid publication (NIT date).				
7	They do not anticipate change in the ownership during the proposed period of Purchase Order (if such a change is anticipated, the scope and effect thereof shall be defined) or in case of any change is anticipated in due course i.e. during the tender period, a written intimation be communicated to this office or during the period of execution of the award, a written permission should be sought from this office. In this regard bidder should submit undertaking duly sealed & signed on their company letter head.				
8	The Bidder must be registered under GST Act and should produce copy of the GST registration certificate, failing which offer shall be rejected. However, if it is undertaken by the bidder that GST registration is under process, in such case the price bid shall be considered for opening but the award will not be issued till registration under GST not submitted. copy of the GST registration certificate				
9	The bidder must have supplied at least three among given below items(Licenses) in the last five years : (i) Oracle Database (ii) Oracle Middleware (iii)Oracle Identity Access Management (iv)Microsoft Office (v) Canva All in one Visual Suite (vi)Git Hub Note: The period of last five years will be calculated from the date of bid publication (NIT date).				
a	Individual Client's Purchase Order (PO)/ Work Order(WO)/Letter of Award(LOA)/ Contract agreement/ Certification on client letterhead.				
10	Bidder must have Supplied Oracle Database/Oracle Middleware/Oracle Identity Access Management/Microsoft Office/Canva All in one Visual Suite/Git				

	Hub in the capacity of lead bidder/Consortium Partner within last five (5) years under order(s)/project(s) (including its extension) having total contract value not less than Rs. 5.00 crores (5 Cr. Value will be considered within Max. 3 Orders) Note: The period of last five years will be calculated from the date of bid publication (NIT date).				
a	Individual Client's Purchase Order (PO)/ Work Order(WO)/Letter of Award(LOA)/ Contract agreement/ Certification on client letterhead.				
11	Bidder must be submit OEM Authorization for any three Line items of Price Schedule-I				
a	Relevant OEM Authorization Certificate				
12	The regular bidder should have sound financial capability. Bidders' annual turnover for the last financial year should be 20% of the tender value or its aggregate turnover for the last five financial years should not be less than the tender value. If the tender is issued after September month, then last year should be financial year ended in month of current year and if tender is issued in or before September month then the last financial year should be the financial year ended in month of last year. Submit a Certificate issued by a CA, as prescribed in Schedule-III of the tender				
13	Minimum working capital of the regular bidder as per the audited balance sheet for the last financial year / Bank Utilization Certificate – Fund Based (not more than 30 days from the date of opening of tender) should be 10% of the tender value and for new bidders it should be at least 1% of the tender value. Submit a Certificate issued by a CA, as prescribed in Schedule-III of the tender				
14	Whether P&L Accounts of last 5 year are enclosed				
15	Whether Balance Sheets of last 5 year are enclosed				
16	Whether duly signed "Tender Document" with respective amendments is attached with the bid				

17	Whether following schedules duly filled & signed with supporting document are enclosed				
a.	Schedule II (A) General Information				
b.	Schedule II(B) Commercial Information				
c.	Schedule III Undertaking / Declaration by the Bidder				
d.	Schedule IV Declaration – I				
e.	Schedule V Declaration – II				
f.	Schedule VI(A) Schedule of Past Experience				
g.	Schedule VI(B) Schedule of Financial information				
h.	Schedule VII(A) Part A - Schedule of Commercial deviations				
i.	Schedule VII(B) Part B - Schedule of Technical deviations				
j.	Schedule VIII “Check List”				
k.	Schedule X Chartered Accountant Firm Certificate.				
l.	Schedule XI Tender Acceptance Letter				
18	Schedule I: Price bid is duly filled in and digitally signed by the signatory authority & uploaded online in envelope-C				
19	The schedule-VIII i.e. Check List submitted and uploaded online in envelope-B				

-Sd-
Chief Engineer (Purchase)
O/o MD (WZ), MPPKVVCL,
Indore

SECTION – VII
SCHEDULE –IX

PROFORMA FOR BANK GUARANTEE TOWARDS SECURITY DEPOSIT

(To be executed on non-Judicial stamp paper worth Rs. 0.25% of security deposit (Maximum 25,000/-) and one rupee revenue stamp may be affixed on bank guarantee and on the E-stamps the names of 1st & 2nd parties should be the Bank & MPPKVVCL, Indore respectively, as BG agreement being in between Bank & MPPKVVCL)

Bank Guarantee No..... dtd.....

In consideration of the M. P. PaschimKshetraVidyutVitaran Company Limited, Indore having agreed to accept this bank guarantee in lieu of cash deposit by way of Security for due and faithful performance required from M/s..... herewith after referred to as contractors the bank hereby agrees unequivocally and unconditionally to pay **at par in any of its Branch situated in Indore or nearest to Indore**, within 48 hours on demand in writings from the M. P. PaschimKshetraVidyutVitaran Company Limited, Indore or any officer authorized by it in this behalf of any amount upto and not exceeding (in words) to the said M. P. PaschimKshetraVidyutVitaran Company Limited, Indore on behalf of the aforesaid M/s who have tendered and contracted for the supply of materials, equipments or services to the said M. P. PaschimKshetraVidyutVitaran Company Limited, Indore against Order No. dt..... for the order value `

This agreement shall be valid and binding on this bank upto and including or for such further period as may hereunder be mutually fixed from time to time in writing by the M. P. PaschimKshetraVidyutVitaran Company Limited, Indore and the contractors and shall not be terminable by notice or any change in the constitution of the aforesaid bank or the firm of contractors or by any other reasons what so ever and the banker's liability hereunder shall not be impaired or discharged by any extensions of, time or variations or alternation made, given conceded or agreed to with or without bank's knowledge or consent by or between the M. P. PaschimKshetraVidyutVitaran Company Limited, Indore and the contractors in the existing and / or further tenders and /or contracts.

It is agreed to by the Bank with the MPPKVVCL, Indore that if for, any reason a dispute arises Concerning the Bank's liability to pay the requisite amount to the MPPKVVCL, Indore under the terms of this guarantee the competent Court at Indore alone shall have the jurisdiction to determine the said dispute and that this shall be without prejudice to the liability of the Bank under the terms of this guarantee being unequivocal and unconditional as mentioned above.

The liability under this guarantee is restricted to

.....(in words) only). This guarantee shall remain in force until unless a demand to enforce a claim is made under this Bank Guarantee by the MPPKVVCL, Indore to the Bank **in any of its Branch situated in Indore or nearest to Indore** within six months from that date, the rights of the M.P. PaschimKshetraVidyutVitaran Company Limited, Indore under this guarantee shall be forfeited and the bank shall be relieved and discharged from all liability there under: -

- (a) Our liability under the Bank Guarantee should be not exceed ` Rs...../
- (b) This Bank Guarantee shall be valid up to
- (c) We are liable to pay the Bank Guarantee amount or any part thereof under this Bank Guarantee only, and only if you serve upon us or at **any Branch situated in Indore or nearest to Indore**, a written claim or demand on or before dated.....
- (d) This Bank Guarantee is valid from to Including claim period.

- (e) We confirm for making payment on receipt of original Bank Guarantee duly discharge on or before the expiry of claim period.

Signed for.....

Bank

Witness:1 And 2

SECTION –VII
(SCHEDULE –X)
ON THE LETTER HEAD OF THE CHARTERED ACCOUNTANT
FIRMCERTIFICATE
TO WHOM SO EVER IT MAY CONCERN

This is to certify that “M/s _____”PAN : _____ GSTIN : _____ having its registered / Head office at _____ (hereinafter referred to as Firm) have participated in the Tender No. _____ of MPPKVVCL, Indore.
In Terms of Clause _____ of the Tender Conditions the Financial Particulars of the Entity participating in the above said tender are as follows”(all the Figures are in Rs.)

- a) Since the NIT of the Tender has issued on **Dec-2025** and hence for the Financial Criteria the **last Financial Year is 2024-25**.
- b) Aggregate ANNUAL TURNOVER of the Entity for the last Five financial years is Rs. _____ .
- c) WORKING CAPITAL of the Entity as per the Balance Sheet for the last financial year / bank utilization certificate-Fund Based (not more than 30 days from the date of opening of tender) is Rs _____ .
- d) The firm fulfill the financial criteria as required under Clause-1.4, Section-II of the tender.
- e) The above said information is true and correct to the best of my knowledge and belief and the Information has been extracted from the Books of Accounts maintained by the entity.

I am aware that the Company (MPPKVVCL, Indore) is relaying this certificate as a valid proof of Financial Capability of the Company.

For, _____
Chartered Accountant Firm,
FRN No. _____

CA. _____
(Designation _____)

M. No. _____
UDIN No. _____

Date : _____
Place: _____
Tenderer

Signature and Seal of

Note:

- (i) The document should be signed by the proprietor / Partner/ Director/ Authorized signatory of the Company.
- (ii) The information given at (b), (c) & (d) above must appear in the website of the Institute of Chartered Accountant against the UDIN Number as given above.
- (iii) The certificate should exactly match with the online data as per the UDIN indicated in the Schedule on ICAI Website.

SECTION –IX
(SCHEDULE –XI)

TENDER ACCEPTANCE LETTER

(To be given on Company Letter Head)

Date:

To,
The Chief Engineer (Pur)
MPPKVVCL, Indore.

Sub: Acceptance of Terms & Conditions of Tender.

Tender Reference No:.....

Name of Tender / Work:

Dear Sir,

1. I / We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/Work' from the web site(s) namely.....as per your advertisement, given in the above mentioned website(s).

2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s), etc., which forms part of the contract agreement and I / we shall abide hereby by the terms / conditions / clauses contained therein.

3. The corrigendum(s) issued from time to time by your department/ organization too have also been taken into consideration, while submitting this acceptance letter.

4. I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s) / corrigendum(s) in its totality / entirety.

5. I / We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully

(Signature of the Bidder, with Official

Seal)

SECTION-VII
SCHEDULE – XII:
DRAFT CONTRACT AGREEMENT

To be executed on non-judicial stamp paper worth Rs. 1000/- and one rupee revenue stamp (stamp should be affixed over it)

THIS AGREEMENT made on this the day of, against office order no.....dtd.....

BETWEEN

(1)<Name of the Purchaser>.....For West Discom - Madhya Pradesh Paschim Kshetra Vidyut Vitaran Company Ltd, Indore.(MPPKVVCL) Indore (Constituted vide order dtd 31.05.2005, notified by the Stste Government implementing restructuring of MPSEB vide no. 3679/FRS/18/13/202 to give effect to reorganization of Madhya Pradesh State Electricity Board under the provision electricity act 2003 (No.36 of 2003), The applicable provision of Madhya Pradesh Vidut Sudhar Adhiniyam 2000(No.04 of 2001) and transfer scheme rule 2003) hereinafter referred to as the West Discom -Madhya Pradesh Paschim Kshetra Vidyut Vitaran Company Ltd, Indore.(MPPKVVCL) Indore company of the one part.

and

(2) M/s_____ of _____
(hereinafter refer to as the contractor/service provider/ Supplier which expression shall where the context so admits include his heirs, executors, administrator & representatives), of the other part.

Whereas in accordance with the notice inviting the tender dtd.....issued by CE (Pur)/Addl.C.E.Pur O/o MD/WZ/MPPKVVCL, Indore. The contractor/service provider/ Supplier submitted his offer which was opened on dtd..... for Whereas West Discom - Madhya Pradesh Paschim Kshetra Vidyut Vitaran Company Ltd, Indore.(MPPKVVCL) Indore company & the contractor/service provider/ Supplier has decided to have provide

.....
& the contractor/service provider/ Supplier has agreed for the same upon the terms or condition here in after contained :-

Now it is hereby declared agreed as follows:

1. The contractor shall perform & carry out all maters incidental / ancillary there to within time specified & in accordance with the special & general terms & condition of the tender document no.....& price bid opened on dtd for in witnesses where of the parties here to signed this agreement on the date & here mentioned against their respective signatures.

Article 1: Contract Documents

1.1 Contract Documents

The following documents shall constitute the Contract between the Purchaser and the Contractor, and each shall be read and construed as an integral part of the Contract:

- (a) Order/Award of Contract No., Dated:
- (b) Price &Quantity
- (c) Specification & Scope of Work
- (d) General Terms & Condition

- (e) Other completed Bidding Forms submitted with the Letter of Bid
- (f) Bid document as submitted by the Bidder including qualification of resources, standards of performance
- (g) Any other documents shall be added here.

1.2 Order of Precedence

In the event of any ambiguity or conflict between the Contract Documents listed above, the order of precedence shall be the order in which the Contract Documents are listed in Article 1.1 (Contract Documents) above.

1.3 Definitions Capitalized words and phrases used herein shall have the same meanings as are described to them in the General Conditions of tender document.

Article 2: Price & statutory levies and Terms of Payment-

2.1 Price & statutory levies (Reference general terms & condition of purchases Clause)

The Purchaser hereby agrees to pay to the Contractor the Contract Price in consideration of the performance by the Contractor of its obligations hereunder. The Contract Price shall be the aggregate of **Rs:** **(In words Rs.....)** as specified in clause/ schedule **Price & Quantity Schedule** or such other sums as may be determined in accordance with the terms and conditions of the Contract.

2.2 Terms of Payment (Reference general terms & condition of purchases Clause)

The terms and procedures of payment according to which the Purchaser will make payment the Contractor are given in the purchases (Terms of Payment) hereto.

Article 3: Effective Date

3.1 Effective Date

The Effective Date is the date upon which the contract period (..... Years) shall be counted after the date of placement of award, when all of the following conditions have been fulfilled:

- (a) The Contractor has submitted to the Purchaser the Performance security.
- (b) This Contract Agreement has been duly executed for and on behalf of the Purchaser and the Contractor;

Each party shall use its best efforts to fulfil the above conditions for which it is responsible as soon as practicable.

If the conditions listed under article 3.1 are not fulfilled within day from the date of this Award notification because of reasons not attributable to the Contractor, the parties shall discuss and agree on an equitable adjustment to the Time for Completion and/or other relevant conditions of the Contract. If the reasons are attributable to the Contractor, the provisions of Suspension / Banning of Business Dealings along with applicable penalties become applicable.

- The laws applicable to this Contract shall be the laws in force in India. The Courts of Indore shall have exclusive jurisdiction in all matters arising under this Contract.

3.2 Resolution of Disputes

(a) Settlement of Disputes& Arbitration

If any dispute of any kind whatsoever shall arise between the Purchaser and the Supplier in connection with or arising out of the Purchase Order, the parties shall seek to resolve any such dispute or difference in opinion, to the extent possible, amicably by mutual consultation.

The Arbitration shall be conducted as per provision of Arbitration and Reconciliation act 1996 and as amended from time to time, and of the rules made there under. The Arbitrators or the Presiding Arbitrator as the case may be, are bound to give a detailed speaking award assigning reasons for the findings. The decision of Arbitral Tribunal shall be final and binding up on both the parties. Supplies under the Purchase Order shall be continued by the Supplier during the arbitration proceedings, unless otherwise, directed in writing by the purchaser or unless the matter is such that the work cannot possibly be continued until the decision of the Arbitrator or of the Presiding Arbitrator, as the case may be, is issued.

Article 4: Communication Address

- 4.2 The address of the Contractor for notice purposes, is:
.....
.....
.....

5.1 The **Schedules & Annexure** listed in the tender document, order & this contract agreement shall be deemed to form an integral part of this Contract Agreement. Reference in the Contract to **Schedules & Annexure** shall mean the **Schedules & Annexure** attached to purchase order, and the Contract shall be read and construed accordingly.

Signed by, for and on behalf of the Purchaser

.....

in the presence of

1.

2.

.....

Name :

Name :

Designation :

Designation :

Purchaser :

Purchaser :

Signed by, for and on behalf of the Contractor

.....

Name :

Designation :

Firm Name :

in the presence of

1.

2.